

REFERENCE

EDPB Digest

Every document published by the European Data Protection Board, 543 of them as of 19 September 2026 (532 on the documents listing, 11 at consultation stage), with one takeaway each.

543

DOCUMENTS

117

WRITTEN TAKEAWAYS

426

ONE-LINE DESCRIPTIONS

16

DOCUMENT TYPES

Reading aid, not a substitute. Every entry carries a numbered source that resolves to the EDPB page at the end.

How to read this

For 117 documents the takeaway was written from the document: what it establishes, who it binds and what to do about it. They are marked "read from the document" and set with a heavy left rule. For the remaining 426, which are approvals of binding corporate rules, accreditation requirements, national DPIA lists, certification criteria, institutional reports and the Board's own procedures, a one-line description says what the document is so it can be ruled in or out.

The choice of which documents earned a written takeaway follows the topics of the site this digest accompanies (privacy operations, the AI Act, assessment tools), not the document's importance in general. Dates are the publication dates shown in the EDPB listing on 19 September 2026. Guidelines still at consultation stage appear on the EDPB consultations page and are here only once the documents listing carries a version.

Documents are grouped by publication type, newest first within each group by the date on the EDPB listing, which is the publication date; where the adoption date differs, the takeaway says so. The number in brackets on each entry is its source number; the source list at the end gives the EDPB URL for every one of the 543 documents.

Contents

- Guidelines: 46 documents, 29 written
- Recommendations: 7 documents, 4 written
- Consultation versions: 11 documents, 10 written
- Statements: 16 documents, 5 written
- Opinions of the Board (Article 64): 257 documents, 5 written
- Binding decisions (Article 65): 12 documents, 7 written
- Legislative opinions: 20 documents, 7 written
- Task force reports: 3 documents, 3 written
- Coordinated enforcement: 5 documents, 3 written
- Other guidance: 21 documents, 10 written
- Support Pool of Experts reports: 22 documents, 13 written
- Legal studies: 9 documents, 4 written
- Adequacy opinions: 10 documents, 10 written
- Reports, statements and letters: 53 documents, 6 written
- Other policy documents: 8 documents, 1 written
- Internal procedure: 43 documents, 0 written

Guidelines

46 documents, 29 with a written takeaway. Newest first.

Guidelines 02/2025 on processing of personal data through blockchain technologies

[1] · Guideline · 07 July 2026

Final guidelines on blockchain: a public permissionless chain makes erasure and rectification hard to honour, so store personal data off-chain where possible and run a DPIA before any on-chain personal data. Version 2.0, adopted 7 July 2026. Outside the site's topics.

Guidelines 02/2024 on Article 48 GDPR

[2] · Guideline · 05 June 2025

[READ FROM THE DOCUMENT](#)

[TRANSFERS](#)

[CONTROLLER PROCESSOR](#)

A request from a third-country court or authority is not in itself a legal basis for processing nor a ground for transfer: the controller or processor needs an Article 6 basis and a Chapter V transfer tool. A mutual legal assistance treaty or similar agreement can supply both, as a legal obligation or public interest task under Article 6(1)(c) or (e) and as appropriate safeguards under Article 46(2) (a); without one, the organisation still needs an Article 6 basis and a Chapter V ground, which in practice is usually a narrowly read Article 49 derogation, since a foreign authority rarely signs Article 46 safeguards. Processors receiving such requests must inform the controller promptly. Version 2.0 was adopted 4 June 2025 after consultation on the December 2024 draft; version 2.1 makes minor corrections.

Guidelines 2/2023 on Technical Scope of Art. 5(3) of ePrivacy Directive

[3] · Guideline · 16 October 2024

[READ FROM THE DOCUMENT](#)

[COOKIES TRACKING](#)

[CONSENT](#)

Article 5(3) of the ePrivacy Directive applies whenever information, personal or not, is stored on or accessed from terminal equipment connected to a public communications network, and the guidelines read each element broadly. URL and pixel tracking, tracking based on an IP address originating from the user's device, unique identifiers collected by client-side code, IoT device reporting and local processing whose results are transmitted all fall within scope, so they need consent or a strict necessity exemption whether or not a cookie is used. Version 2.0, adopted 7 October 2024 after public consultation, applies to any provider of online services; audit all client-side scripts and identifiers, not just cookies.

Guidelines 01/2023 on Article 37 Law Enforcement Directive

[4] · Guideline · 19 June 2024

Guidelines on Article 37 of the Law Enforcement Directive: transfers by police and judicial authorities to third countries on the basis of appropriate safeguards. Police and justice sector.

Guidelines 03/2021 on the application of Article 65(1)(a) GDPR

[5] · Guideline · 24 May 2023

Guidelines on when the Board may adopt a binding decision under Article 65(1)(a) after a relevant and reasoned objection. Procedure between authorities.

Guidelines 04/2022 on the calculation of administrative fines under the GDPR

[6] · Guideline · 24 May 2023

[READ FROM THE DOCUMENT](#)

[ENFORCEMENT](#)

Supervisory authorities calculate GDPR fines in five steps: identify the processing operations and apply Article 83(3), set a starting point from the seriousness of the infringement (0 to 10 percent, 10 to 20 percent or 20 to 100 percent of the legal maximum) adjusted for the undertaking's turnover, weigh aggravating and mitigating circumstances, apply the legal maximum, and check that the result is effective, proportionate and dissuasive. The guidelines bind authorities in their own practice and apply to controllers and processors that are undertakings. Use the method to model exposure and to evidence the mitigating factors, such as cooperation and remedial action, that reduce the amount.

Guidelines 05/2022 on the use of facial recognition technology in the area of law enforcement

[7] · Guideline · 17 May 2023

Guidelines on facial recognition technology in law enforcement: necessity and proportionality, prohibited uses such as remote identification in public and inference of protected characteristics, and the safeguards the Law Enforcement Directive requires. Police sector.

Guidelines 01/2022 on data subject rights - Right of access[8] · Guideline · 17 April 2023 [READ FROM THE DOCUMENT](#) [RIGHTS](#)

The right of access has three parts: confirmation that data are processed, access to the data themselves, and the Article 15 information on purposes, categories, recipients, retention, rights and safeguards. Controllers must provide a free first copy, in a commonly used electronic form where the request was made electronically unless the person asks otherwise, respond within one month extendable by two, may layer large volumes only if all layers are available at once, must interpret manifestly unfounded or excessive narrowly and prove it, and may limit only the data, not the accompanying information, to protect others' rights. Build the response procedure around these points, since the EDPB ran a coordinated enforcement action on the right of access in 2024, reported in January 2025.

Guidelines 8/2022 on identifying a controller or processor's lead supervisory authority[9] · Guideline · 17 April 2023 [READ FROM THE DOCUMENT](#) [GOVERNANCE](#) [ENFORCEMENT](#) [CONTROLLER PROCESSOR](#)

The lead supervisory authority for cross-border processing is the authority of the main establishment: for a controller the place of central administration in the Union unless decisions on purposes and means are taken and implemented elsewhere, for a processor its central administration or, failing that, where the main processing takes place. Version 2.1 adds that main establishment attaches to a single controller and cannot be extended to joint controllers, each of which keeps its own. Forum shopping is not permitted, and a processor working for a controller is supervised by the controller's lead authority. The guidelines replace WP244 rev.01; document the main establishment analysis with objective evidence.

Guidelines 9/2022 on personal data breach notification under GDPR[10] · Guideline · 04 April 2023 [READ FROM THE DOCUMENT](#) [BREACH](#) [SECURITY](#)

Controllers notify a personal data breach to the competent supervisory authority without undue delay and where feasible within 72 hours of becoming aware, unless it is unlikely to result in a risk, and communicate to data subjects only where the risk is high; every breach, notified or not, is documented under Article 33(5). Version 2.0 changes one point from WP250 rev.01, which it replaces: a controller not established in the Union but subject to Article 3(2) does not benefit from the one-stop-shop and must notify every supervisory authority whose Member State has affected data subjects. Non-EU controllers should map notification routes per Member State in advance.

Guidelines 03/2022 on deceptive design patterns in social media platform interfaces: how to recognise and avoid them[11] · Guideline · 24 February 2023 [READ FROM THE DOCUMENT](#) [TRANSPARENCY](#) [CONSENT](#) [COOKIES TRACKING](#)

Interfaces that push users into unintended or harmful choices about their data breach the fairness principle in Article 5(1)(a), transparency in Article 12, data minimisation in Article 5(1)(c) and data protection by design in Article 25. The guidelines sort such patterns into six categories, overloading, skipping, stirring, obstructing, fickle and left in the dark, across registration, privacy notices, consent and settings, rights requests and account closure. They address social media providers, designers and DPOs, and version 2.0 renames dark patterns as deceptive design patterns. Use the categories as a review checklist for any consent or settings interface, since the EDPB applied the same reasoning in Binding Decision 2/2023.

Guidelines 05/2021 on the Interplay between the application of Article 3 and the provisions on international transfers as per Chapter V of the GDPR

[12] · Guideline · 24 February 2023 [READ FROM THE DOCUMENT](#) [TRANSFERS](#)

A transfer under Chapter V requires three cumulative conditions: the exporter is subject to the GDPR for the processing, it discloses or makes data available to a separate controller or processor, and that importer is in a third country, whether or not itself subject to the GDPR. Direct disclosure by the data subject and access by the same controller's own employee abroad are not transfers, but remote access by a separate entity, even display on a screen, is. Version 2.0 confirms Chapter V applies to importers caught by Article 3(2) and adds twelve illustrated examples. Map every third-country access path, including support and administration, against the three criteria.

Guidelines 07/2022 on certification as a tool for transfers

[13] · Guideline · 24 February 2023

Guidelines on certification as a transfer tool under Article 46(2)(f): what a certification scheme must contain for a third-country importer to rely on it. The first scheme was approved for this use in April 2026 (Europrivacy, Opinion 15/2026); certification, the covered processing and the binding commitments must together satisfy Article 46(2)(f).

Guidelines 06/2022 on the practical implementation of amicable settlements

[14] · Guideline · 12 May 2022

Guidelines on how supervisory authorities may settle cross-border complaints amicably under Article 60. Procedure between authorities.

Guidelines 02/2022 on the application of Article 60 GDPR

[15] · Guideline · 14 March 2022

Guidelines on the cooperation procedure between lead and concerned authorities under Article 60. Procedure between authorities.

Guidelines 04/2021 on Codes of Conduct as tools for transfers

[16] · Guideline · 22 February 2022

Guidelines on codes of conduct as a transfer tool under Article 46(2)(e): what a code must contain for a third-country importer to rely on it. No code has yet been approved for this use.

Guidelines 01/2021 on Examples regarding Personal Data Breach Notification

[17] · Guideline · 03 January 2022 [READ FROM THE DOCUMENT](#) [BREACH](#) [SECURITY](#)

Eighteen fictional but representative cases across six categories, ransomware, data exfiltration attacks, internal human risk, lost or stolen devices and paper, mispostal and social engineering, show how to assess risk and decide whether to notify the supervisory authority under Article 33 and communicate to data subjects under Article 34. Each case sets out the prior security measures expected, the risk assessment, mitigation and resulting obligations, and complements the general notification guidance now found in Guidelines 9/2022. The guidelines address controllers; use the cases to calibrate an incident triage procedure, remembering that any change in circumstances can change the risk level and the outcome.

Guidelines 10/2020 on restrictions under Article 23 GDPR

[18] · Guideline · 13 October 2021

Guidelines on Article 23: Member State laws restricting data subject rights must be necessary, proportionate, foreseeable and time-limited, and cannot suspend rights wholesale. Relevant to legislators and public bodies.

Guidelines 02/2021 on virtual voice assistants

[19] · Guideline · 07 July 2021 [READ FROM THE DOCUMENT](#) [CONSENT](#) [BIOMETRICS](#) [COOKIES TRACKING](#)

Virtual voice assistants fall under Article 5(3) of the ePrivacy Directive as well as the GDPR: storing or accessing data on the device requires prior consent unless strictly necessary to perform a service the user requested, and processing for improvement, personalisation or profiling needs consent under Article 6(1)(a). Voice recordings can be biometric data under Article 9, data captured through accidental activation has no legal basis and must be deleted, and indefinite retention breaches storage limitation. The guidelines apply to VVA providers, designers, application developers, device manufacturers and integrators. Map the roles in your VVA ecosystem and build voice-based ways to exercise access and erasure.

Guidelines 07/2020 on the concepts of controller and processor in the GDPR

[20] · Guideline · 07 July 2021 [READ FROM THE DOCUMENT](#) [CONTROLLER PROCESSOR](#) [GOVERNANCE](#)

Controller and processor are functional, autonomous concepts fixed by who actually determines the purposes and the essential means of processing (data types, retention, recipients, data subjects), not by contractual labels; non-essential means can be left to the processor. Joint controllership arises from common or converging decisions that are inextricably linked, and needs a transparent Article 26 arrangement. An Article 28 contract must be specific to the processing rather than restating the GDPR, and sub-processors require prior authorisation. The guidelines apply to controllers, processors and supervisory authorities across the EEA; version 2.1 of 20 September 2022 is the current text of this 7 July 2021 version.

Guidelines 8/2020 on the targeting of social media users

[21] · Guideline · 13 April 2021 [READ FROM THE DOCUMENT](#) [MARKETING](#) [CONTROLLER PROCESSOR](#) [LAWFUL BASIS](#)

Social media providers and targeters are generally joint controllers for targeting: the targeter chooses the audience criteria and the message, the platform decides which data and criteria are available, so an Article 26 arrangement is required. Article 6(1)(b) cannot support online advertising; legitimate interests requires the three cumulative conditions, and consent is needed for tracking-based profiling and wherever Article 5(3) of the ePrivacy Directive applies to cookies. Telling users merely that data is used for advertising is not transparent enough, inferred special category data rarely benefits from an Article 9(2) exception, and targeting of vulnerable groups calls for a DPIA. Version 2.0 of 13 April 2021 is final.

Guidelines 01/2020 on processing personal data in the context of connected vehicles and mobility related applications

[22] · Guideline · 09 March 2021 [READ FROM THE DOCUMENT](#) [CONSENT](#) [DPIA](#) [SECURITY](#)

Most data processed in and around a connected vehicle is personal data, since it can be linked to the driver, owner or passengers, and Article 5(3) of the ePrivacy Directive applies to storing or accessing information on the vehicle, so consent is required unless the access is strictly necessary for a service the user requested. Location, biometric and offence-related data get special treatment: minimise location data, keep biometrics local and encrypted with a non-biometric alternative, and process offence-related data locally under the user's control. Manufacturers, service providers, insurers, dealers, fleet managers and telecom operators are addressed, with worked cases on pay-as-you-drive insurance, rental, eCall and accident research. Version 2.0 of 9 March 2021 is final; prefer local processing and run a DPIA.

Guidelines 09/2020 on relevant and reasoned objection under Regulation 2016/679

[23] · Guideline · 09 March 2021

Guidelines on what makes an objection by a concerned authority relevant and reasoned under Article 4(24). Procedure between authorities.

Guidelines 06/2020 on the interplay of the Second Payment Services Directive and the GDPR

[24] · Guideline · 15 December 2020

Guidelines on the interplay between the Second Payment Services Directive and the GDPR: explicit consent under PSD2 is contractual, not GDPR consent, and silent party data has limits. Payments sector.

Guidelines 2/2020 on articles 46 (2) (a) and 46 (3) (b) of Regulation 2016/679 for transfers of personal data between EEA and non-EEA public authorities and bodies

[25] · Guideline · 15 December 2020

Guidelines on transfers between EEA and non-EEA public bodies under Article 46(2)(a) and 46(3)(b): what a legally binding instrument or administrative arrangement must contain. Public bodies.

Guidelines 4/2019 on Article 25 Data Protection by Design and by Default

[26] · Guideline · 20 October 2020 [READ FROM THE DOCUMENT](#) [GOVERNANCE](#) [SECURITY](#)

Article 25 obliges controllers to implement appropriate technical and organisational measures that embed each data protection principle effectively into processing, chosen with regard to the state of the art, cost, the nature, scope, context and purposes of processing and the risks, and to demonstrate effectiveness, for example through key performance indicators. By default only data necessary for each purpose may be processed, judged by amount, extent, storage period and accessibility. The obligation applies when the means are determined and throughout processing, including legacy systems, and processors and producers should support it. Version 2.0 of 20 October 2020 is final; failure to implement it affects fines under Article 83(4).

Guidelines 5/2019 on the criteria of the Right to be Forgotten in the search engines cases under the GDPR (part 1)

[27] · Guideline · 07 July 2020 [READ FROM THE DOCUMENT](#) [RIGHTS](#)

A data subject may ask a search engine provider to delist results returned for a search on their name on any of the six grounds in Article 17(1) GDPR, and the provider may refuse under the five exemptions in Article 17(3). Delisting removes the link from name-based results only; the content stays on the source website and the request does not erase it there. Search engine operators should test each request against the grounds and then the exemptions, and document the balancing. Part 1 covers the grounds and exemptions; criteria for handling complaints are announced as a later part.

Guidelines 05/2020 on consent under Regulation 2016/679

[28] · Guideline · 04 May 2020 [READ FROM THE DOCUMENT](#) [CONSENT](#) [COOKIES TRACKING](#) [LAWFUL BASIS](#)

Valid consent under Article 4(11) GDPR must be freely given, specific, informed and an unambiguous affirmative act: pre-ticked boxes, silence and scrolling do not count, and access to a service must not be made conditional on consent to cookies, so cookie walls fail the freely given test. The guidelines apply to every controller relying on Article 6(1)(a), with public authorities and employers warned that the imbalance of power usually rules consent out. Controllers should separate consent by purpose, keep records that show what was asked and when, and make withdrawal as easy as giving consent. The guidelines replace WP29 Guidelines WP259 rev.01.

Guidelines 03/2020 on the processing of data concerning health for the purpose of scientific research in the context of the COVID-19 outbreak

[29] · Guideline · 21 April 2020

Guidelines on processing health data for Covid-19 research: consent under Articles 6(1)(a) and 9(2)(a) can be the legal basis but must not be confused with the ethical consent to take part in a study, other research bases and Article 89 safeguards apply, and transfers may use Article 49 derogations in the emergency. Historical; the general points are in the 2026 scientific research guidelines.

Guidelines 04/2020 on the use of location data and contact tracing tools in the context of the COVID-19 outbreak

[30] · Guideline · 21 April 2020

Guidelines on location data and contact tracing tools during the Covid-19 outbreak: voluntary use, no location tracking of individuals, proximity data only. Historical.

Guidelines 3/2019 on processing of personal data through video devices

[31] · Guideline · 30 January 2020 [READ FROM THE DOCUMENT](#) [BIOMETRICS](#) [LAWFUL BASIS](#) [DPIA](#)

Video surveillance falls under the GDPR whenever identifiable people are captured, and the household exemption does not cover a camera that films public space or an area open to an indefinite number of people. Public and private controllers must ground each camera in a lawful basis, usually legitimate interest backed by real and present threats or, for public bodies, a public-interest task, since Article 6(1)(f) is closed to authorities performing their tasks; consent cannot be inferred from entering a monitored area, and facial recognition that identifies people is biometric processing needing an Article 9(2) exception. Practitioners should post a layered notice at the entrance, keep retention to a few days unless longer is justified, and run a DPIA for large-scale systematic monitoring of publicly accessible areas.

Guidelines 3/2018 on the territorial scope of the GDPR (Article 3) - version adopted after public consultation

[32] · Guideline · 12 November 2019 [READ FROM THE DOCUMENT](#) [GOVERNANCE](#)

Article 3 GDPR is applied processing activity by processing activity, not to an organisation. Under Article 3(1) it reaches any processing carried out in the context of the activities of an EU establishment, wherever the processing happens, and a single employee with stable arrangements can be enough. Under Article 3(2) it reaches controllers and processors outside the EU that offer goods or services to people in the Union or monitor their behaviour, with mere website accessibility insufficient; those entities must generally appoint an Article 27 representative, who cannot be the DPO. Practitioners should map each processing activity against both criteria and name the representative in privacy notices.

Guidelines 2/2019 on the processing of personal data under Article 6(1)(b) GDPR in the context of the provision of online services to data subjects

[33] · Guideline · 16 October 2019 [READ FROM THE DOCUMENT](#) [LAWFUL BASIS](#) [MARKETING](#)

Article 6(1)(b) GDPR covers only processing that is objectively necessary to perform the contract with the data subject: writing a processing operation into the terms does not make it necessary, and a less intrusive way of delivering the service defeats the basis. For online service providers the guidelines rule out contractual necessity for behavioural advertising and service improvement metrics, treat fraud prevention as likely to exceed it, and allow personalisation only where it is integral to the service the user signed up for. Controllers should test each purpose separately against the contract, move purposes that fail to legitimate interests or consent, and record the assessment.

Guidelines 1/2018 on certification and identifying certification criteria in accordance with Articles 42 and 43 of the Regulation - version adopted after public consultation

[34] · Guideline · 04 June 2019

Guidelines on certification under Articles 42 and 43: how certification criteria are drafted and what a scheme must cover. For scheme owners and certification bodies.

Guidelines 1/2019 on Codes of Conduct and Monitoring Bodies under Regulation 2016/679

[35] · Guideline · 04 June 2019

Guidelines on codes of conduct and monitoring bodies under Articles 40 and 41: how a code is drafted, approved and monitored. For code owners and sector associations.

Guidelines 4/2018 on the accreditation of certification bodies under Article 43 of the General Data Protection Regulation (2016/679)

[36] · Guideline · 14 December 2018

Guidelines on accrediting certification bodies under Article 43, with Annex 1 setting the additional requirements beyond ISO/IEC 17065. For accreditation bodies and certification bodies.

Automated decision-making and profiling

[37] · Guideline · 25 May 2018 [READ FROM THE DOCUMENT](#) [AI](#) [RIGHTS](#)

Article 22(1) GDPR is a general prohibition on decisions based solely on automated processing, including profiling, that produce legal effects or similarly significantly affect a person; it lifts only where the decision is necessary for a contract, authorised by Union or Member State law, or based on explicit consent. Under the contract and consent exceptions the controller must provide human intervention that is meaningful rather than a token gesture, let the person express their view and contest the decision (for the legal-authorisation exception the law itself must lay down the safeguards), and explain the rationale and criteria in simple terms. Controllers should map each scoring or eligibility decision against Article 22 and run a DPIA where it applies.

Data Protection Officer

[38] · Guideline · 25 May 2018 [READ FROM THE DOCUMENT](#) [GOVERNANCE](#)

A DPO is mandatory for every public authority or body except courts acting judicially, and for any organisation whose core activities involve large-scale regular and systematic monitoring of data subjects or large-scale processing of special category or criminal conviction data. The DPO must have expert knowledge of data protection law, may not be instructed on how to perform the tasks or be dismissed or penalised for doing them, reports to the highest management level and cannot hold a role that decides the purposes and means of processing. A voluntary DPO carries the same obligations, and a group may share one DPO who is easily accessible from each establishment.

Data Protection impact assessments High risk processing

[39] · Guideline · 25 May 2018 [READ FROM THE DOCUMENT](#) [DPIA](#)

A DPIA is required where processing is likely to result in a high risk, and the guidelines give nine indicators: evaluation or scoring, automated decisions with legal or similar effect, systematic monitoring, sensitive or highly personal data, large scale, matching or combining datasets, vulnerable data subjects, innovative use of technology, and processing that prevents people exercising a right or using a service. As a rule of thumb, processing meeting two of the nine criteria calls for a DPIA, and a decision not to do one should be documented. Residual high risk must go to the supervisory authority for prior consultation, and the assessment is reviewed as processing changes.

Guidelines 2/2018 on derogations of Article 49 under Regulation 2016/679

[40] · Guideline · 25 May 2018 [READ FROM THE DOCUMENT](#) [TRANSFERS](#)

Article 49 derogations are exceptions to be interpreted restrictively so that the exception does not become the rule: an exporter must first look for an adequacy decision under Article 45, then appropriate safeguards under Article 46, and only then a derogation. Most derogations cover only occasional, non-repetitive transfers, so a systematic flow within a stable business relationship cannot rest on them, and the compelling legitimate interests ground is a last resort limited to non-repetitive transfers of a limited number of data subjects, with safeguards and notification to the supervisory authority. Exporters should document why Articles 45 and 46 were unavailable before relying on a derogation.

Guidelines for identifying a controller or processor's lead supervisory authority, WP244 rev.01

[41] · Guideline · 25 May 2018 [READ FROM THE DOCUMENT](#) [SUPERSEDED](#) [GOVERNANCE](#) [ENFORCEMENT](#)

The one-stop-shop gives a controller or processor engaged in cross-border processing a single lead supervisory authority, the one for its main establishment: normally the place of central administration in the EU, unless decisions on the purposes and means are taken and implemented elsewhere. The GDPR does not permit forum shopping; a supervisory authority may rebut a claimed main establishment and require evidence of where decisions are actually taken, and a controller with no EU establishment gets no lead authority at all. Processors follow the controller's lead authority for the processing concerned. EDPB Guidelines 8/2022, version 2.0 adopted 28 March 2023, replaced them.

Guidelines on Personal data breach notification under Regulation 2016/679, WP250 rev.01

[42] · Guideline · 25 May 2018 [READ FROM THE DOCUMENT](#) [SUPERSEDED](#) [BREACH](#) [SECURITY](#)

A personal data breach can affect the confidentiality, integrity or availability of personal data, and not every security incident is one. A controller is aware once it has a reasonable degree of certainty that personal data have been compromised; it then has 72 hours where feasible to notify the supervisory authority unless the breach is unlikely to result in a risk, may notify in phases, and must communicate to data subjects without undue delay for high-risk breaches. Processors must notify the controller without undue delay, and every breach, notified or not, must be documented. The guidelines were replaced by EDPB Guidelines 9/2022, version 2.0 adopted 28 March 2023.

Guidelines on the right to data portability under Regulation 2016/679, WP242 rev.01

[43] · Guideline · 25 May 2018 [READ FROM THE DOCUMENT](#) [RIGHTS](#)

The right to data portability under Article 20 GDPR lets a person obtain, and move to another controller, the personal data they gave to a controller, provided the processing runs on consent or contract and by automated means. 'Provided' data includes what the person typed in and what the controller observed from their activity; profiles and other inferred data are outside the right. The format must be structured, commonly used and machine-readable, the export free and unobstructed, and the receiving controller needs its own lawful basis for third-party data. Practitioners should confirm the lawful basis of each data set before deciding what is in scope.

Right to data portability

[44] · Guideline · 25 May 2018 [READ FROM THE DOCUMENT](#) [RIGHTS](#)

Article 20 GDPR gives a data subject the right to receive the personal data they provided to a controller in a structured, commonly used and machine-readable format, and to have it transmitted directly to another controller where technically feasible. The right applies only where processing rests on consent or contract and is carried out by automated means; it covers data actively supplied and data observed from the person's use of the service, but not data the controller has inferred or derived. Exercising it triggers no erasure and must be free and unhindered. Controllers should map the data sets in scope and build an export path in advance.

Transparency

[45] · Guideline · 25 May 2018 [READ FROM THE DOCUMENT](#) [TRANSPARENCY](#)

Transparency under Articles 12 to 14 GDPR means information that is concise, transparent, intelligible and easily accessible, in clear and plain language: the reader should not have to seek it out, and qualifiers such as 'may', 'might', 'some' or 'often' should be avoided because they leave the reader unsure what actually happens. The obligation applies to every controller regardless of lawful basis and across the whole processing life cycle; Article 13 information is due when the data are obtained, Article 14 information within a month and earlier if the data are disclosed to a recipient. Layered online notices should put purposes, controller identity and rights in the first layer, and material changes must be actively communicated.

Article 29 Working Party - Guidelines on transparency under Regulation 2016/679

[46] · Guideline · 11 April 2018 [READ FROM THE DOCUMENT](#) [TRANSPARENCY](#)

Information given to data subjects under Articles 13 and 14 GDPR must be concise, transparent, intelligible and easily accessible, in clear and plain language that an average member of the intended audience understands; layered privacy statements online should put the highest-impact processing, purposes, controller identity and rights up front. Timing is fixed: at collection under Article 13, within one month under Article 14 and before any disclosure to a recipient. A material change to a notice, such as a new purpose, must be actively communicated; expecting people to check for updates is unfair. Every controller should audit its notices against these tests, whatever the lawful basis.

Recommendations

7 documents, 4 with a written takeaway. Newest first.

Recommendations 1/2025 on the 2027 WADA World Anti-Doping Code

[47] · Recommendation · 13 February 2025

Recommendations on the 2027 World Anti-Doping Code and its international standards, on the proportionality of athlete data processing and transfers. Sport governing bodies.

Recommendations 1/2022 on the Application for Approval and on the elements and principles to be found in Controller Binding Corporate Rules (Art. 47 GDPR)

[48] · Recommendation · 20 June 2023 [READ FROM THE DOCUMENT](#) [TRANSFERS](#) [GOVERNANCE](#)

A single standard application form and a referential of mandatory elements now govern approval of controller binding corporate rules under Article 47, replacing WP256 rev.01 and WP264. The recommendations apply to any group applying for BCR-C and to every existing BCR-C holder, who must align their rules as part of the 2024 annual update, generally without a new approval. Applicants submit one copy to the presumptive BCR lead covering structure, data flows, binding mechanism, training, audit and the DPO network, and map each element of the referential to the BCR text before filing.

Recommendations 01/2020 on measures that supplement transfer tools to ensure compliance with the EU level of protection of personal data

[49] · Recommendation · 18 June 2021 [READ FROM THE DOCUMENT](#) [TRANSFERS](#)

Data exporters must follow a six-step roadmap after Schrems II: know your transfers, identify the transfer tool, assess whether third-country law or practice undermines it, adopt supplementary measures where needed, complete procedural steps and re-evaluate at appropriate intervals. The assessment must rest on relevant, objective, reliable, verifiable and publicly available or otherwise accessible information; the absence of prior access requests is never decisive on its own. Annex 2 gives technical, contractual and organisational measures, with encryption and pseudonymisation under keys the importer cannot reach, and split or multi-party processing, as the effective technical use cases. Version 2.0 of 18 June 2021 is final and applies to controllers and processors acting as exporters, who should document every step as the transfer impact assessment.

Recommendations 02/2021 on the legal basis for the storage of credit card data for the sole purpose of facilitating further online transactions

[50] · Recommendation · 19 May 2021 [READ FROM THE DOCUMENT](#) [LAWFUL BASIS](#) [CONSENT](#)

Storing a customer's credit card data after a purchase, solely to make later purchases easier, can rest only on consent under Article 6(1)(a) GDPR. Contract performance does not apply because the transaction is complete, legal obligation is irrelevant, and legitimate interests fails the balancing test given the sensitivity of financial data and the customer's reasonable expectations. Consent must come from a clear affirmative act such as an unticked box, separately from the terms of service and never as a precondition of the purchase, and withdrawal must lead to deletion. Addressed to online goods and service providers in the EEA; apply it to every checkout that offers to remember a card.

Recommendations 01/2021 on the adequacy referential under the Law Enforcement Directive

[51] · Recommendation · 02 February 2021

Recommendations on the adequacy referential under the Law Enforcement Directive: what the Commission assesses before finding a third country adequate for police transfers. Police sector.

Recommendations 02/2020 on the European Essential Guarantees for surveillance measures

[52] · Recommendation · 10 November 2020 [READ FROM THE DOCUMENT](#) [TRANSFERS](#)

Four European Essential Guarantees define when third-country surveillance access to transferred data is compatible with EU fundamental rights: processing based on clear, precise and accessible rules; necessity and proportionality, with no generalised and indiscriminate access; an independent oversight mechanism with binding powers; and effective remedies before an independent body, including notification once it no longer jeopardises an investigation. Adopted on 10 November 2020, they update the WP29 working document WP237 of 2016 in light of Schrems II and ECtHR case law. Exporters apply them in step 3 of Recommendations 01/2020, and the Commission applies them in adequacy assessments under Article 45.

Recommendation 01/2019 on the draft list of the European Data Protection Supervisor regarding the processing operations subject to the requirement of a data protection impact assessment (Article 39.4 of Regulation (EU) 2018/1725)

[53] · Recommendation · 12 July 2019

Recommendation on the European Data Protection Supervisor's list of processing operations requiring a DPIA for EU institutions. EU institutions only.

Consultation versions

11 documents, 10 with a written takeaway. Newest first.

Guidelines 02/2026 on anonymisation (version for public consultation)

[54] · Consultation version · 08 July 2026 [READ FROM THE DOCUMENT](#) [CONSULTATION](#)

Data is anonymous only when it no longer relates to an identified or identifiable person for the entity holding it, judged by content, purpose and effect; the test has three limbs, none of which may be met: no singling out of a record, no linking of records about the same person, and no inference of an attribute. The guidelines, which fold in the Court of Justice's September 2025 ruling in *EDPS v SRB*, allow a contextual assessment (what the actual recipients and reasonably likely third parties can do) or a simplified one applied uniformly. Consultation runs to 30 October 2026; treat every 'anonymised' export, training set or statistic against the three limbs now, and keep the assessment on file, since this is the standard supervisory authorities will apply once the text is final.

Guidelines 03/2026 on web scraping in the context of generative AI (version for public consultation)

[55] · Consultation version · 08 July 2026 [READ FROM THE DOCUMENT](#) [CONSULTATION](#)

Scraping the web for personal data to train or ground a generative AI model is processing under the GDPR from the moment of collection, so the scraper needs a legal basis (in practice legitimate interests under the three-step test), purpose limitation and transparency, with the Article 14(5)(b) relief from individual notice only where informing people is impossible or disproportionate and public information is given instead. Controllers should scrape from reliable sources, respect machine-readable opt-outs, record timestamps and provenance, filter and validate data before training, and treat special category data as prohibited unless an Article 9(2) exception applies alongside the Article 6 basis. Consultation runs to 30 October 2026; read it with Opinion 28/2024 on AI models.

Template for personal data breach notification (version for public consultation)

[56] · Consultation version · 10 June 2026 [READ FROM THE DOCUMENT](#) [CONSULTATION](#)

A common EU template for notifying personal data breaches to supervisory authorities under Article 33, built for implementation in each authority's online tool: conditional sections that appear only when relevant, predefined answer values and tooltips, covering the nature of the breach, categories and numbers of people and records, likely consequences, measures taken, timing and reasons for any delay, and cross-border elements. Consultation ran 10 June to 5 August 2026; the Board will decide the timetable for authorities to adopt it. Map the incident intake form to its fields now so a notification can be assembled from the record rather than rewritten under the 72-hour clock.

Guidelines 1/2026 on processing of personal data for scientific research purposes (version for public consultation)

[57] · Consultation version · 15 April 2026 [READ FROM THE DOCUMENT](#) [CONSULTATION](#)

Six indicators decide whether an activity is scientific research (methodical approach, ethical standards, verifiability, independence, societal objective, scientific merit); commercial research qualifies if it is genuinely scientific. Any Article 6 basis can carry it, with broad consent allowed for defined research areas under extra safeguards, public interest where law provides for it, and legitimate interests weighted in research's favour; special categories need an Article 9(2) condition such as (j) with a legal basis in Union or national law. Further processing for research is presumed compatible under Article 5(1)(b) but still needs its own lawful basis, storage may be extended only for identified projects or a defined research area, and Article 89(1) safeguards (anonymise or pseudonymise where the purpose allows, ethics review, secure environments, DPIA) condition the derogations from erasure, objection and information duties. Adopted 15 April 2026 for consultation to 25 June 2026.

Template for Data Protection Impact Assessment (version for public consultation)

[58] · Consultation version · 14 April 2026 [READ FROM THE DOCUMENT](#) [CONSULTATION](#)

A harmonised DPIA report template with predefined fields and an explainer, adopted 14 April 2026 for consultation to 9 June 2026, meant to structure and evidence the Article 35 assessment: description of the processing, necessity and proportionality, risks to individuals, measures, residual risk and consultation of the DPO and of data subjects. Use is not mandatory; after consultation each supervisory authority will adopt it either as its sole standard or as a meta-template that national formats must map to. Compare the site's DPIA tool field by field once the final version is published, and expect authorities to ask for reports in this shape.

Recommendations 1/2026 on the Application for Approval and on the elements and principles to be found in Processor Binding Corporate Rules (Art. 47 GDPR) (version for public consultation)

[59] · Consultation version · 15 January 2026 [READ FROM THE DOCUMENT](#) [CONSULTATION](#)

The application form, the elements and principles table and the background paper for processor binding corporate rules, replacing WP257 rev.01 and WP265: the same structure as Recommendations 1/2022 for controller BCRs, with the scope clarified (transfers from the processor to its own sub-processor members, not direct transfers from an external controller), full rather than summarised information to data subjects on their enforceable rights, a duty on importers to notify and, where grounds exist, challenge government access requests, and a reminder that approval does not assess supplementary measures, which each exporter still owes transfer by transfer. Adopted 15 January 2026 for consultation to 2 March 2026; groups with processor BCRs in progress should draft to the new table.

Recommendations 2/2025 on the legal basis for requiring the creation of user accounts on e-commerce websites (version for public consultation)

[60] · Consultation version · 03 December 2025 [READ FROM THE DOCUMENT](#) [CONSULTATION](#)

Making a customer create an account before buying rarely passes the Article 6(1)(b) necessity test: a one-off purchase needs only the data to execute the sale, so the account is necessary only for genuine subscriptions with recurrent authenticated interactions or offers restricted to a verified closed group. Legitimate interests fail for fraud prevention, loyalty and order tracking because less intrusive means exist, and consent can only carry optional account benefits kept separate from checkout. Offering a guest checkout beside the account is the design that satisfies Article 25, and dormant account data must be deleted under storage limitation. Adopted 3 December 2025 for consultation to 12 February 2026; retailers should add a guest path now.

Joint Guidelines of the EDPB and the European Commission on the interplay between the Digital Markets Act and the GDPR (version for public consultation)

[61] · Consultation version · 09 October 2025 [CONSULTATION](#)

Draft joint guidelines on how gatekeepers meet both the DMA and the GDPR when combining or cross-using personal data (Article 5(2) DMA), on data portability, app distribution and messaging interoperability. Gatekeepers only; the cookie digest carries the entry. Consultation 9 October to 4 December 2025.

Guidelines 3/2025 on the interplay between the Digital Services Act and the GDPR (version for public consultation)

[62] · Consultation version · 11 September 2025 [READ FROM THE DOCUMENT](#) [CONSULTATION](#)

The DSA's duties for intermediaries and platforms are performed under the GDPR, not outside it, and the DSA supplies no legal basis of its own: notice-and-action channels should let people report anonymously unless identification is needed, recommender systems on very large platforms must offer a non-profiling option under which no profile is built for future recommendations, targeted advertising may never use special category data and never target minors, and age assurance should avoid methods that identify users unambiguously such as government ID uploads. Supervisory authorities and Digital Services Coordinators cooperate on the overlap. Adopted for consultation 12 September to 31 October 2025; relevant to any marketplace, app or platform in scope of the DSA.

Guidelines 01/2025 on pseudonymisation (version for public consultation)

[63] · Consultation version · 16 January 2025 [READ FROM THE DOCUMENT](#) [CONSULTATION](#)

Pseudonymised data stays personal data for everyone who could re-attribute it with the separately held additional information, so pseudonymisation is a safeguard, not an exit from the GDPR. It works within a defined pseudonymisation domain where the keys, lookup tables and original data are kept apart under technical and organisational measures, and within that domain it reduces the impact of a breach (Article 32), supports minimisation and confidentiality by design (Article 25), strengthens a legitimate interest balancing, and can serve as a supplementary measure for transfers where the additional information stays out of the third country's reach. Adopted 16 January 2025 for consultation to 14 March 2025; no final version had been published by September 2026.

Guidelines 1/2024 on processing of personal data based on Article 6(1)(f) GDPR (version for public consultation)

[64] · Consultation version · 08 October 2024 [READ FROM THE DOCUMENT](#) [CONSULTATION](#)

Legitimate interests carry processing only when three cumulative conditions are met: an interest that is lawful, clearly articulated and real and present rather than speculative; processing that is necessary, meaning the interest cannot reasonably be achieved just as effectively by less intrusive means; and a balancing in which the person's interests, the sensitivity of the data, the context, vulnerable groups, reasonable expectations (which do not depend only on what the privacy notice said) and mitigating measures beyond the legal minimum are weighed. After an objection the controller must show compelling legitimate grounds, a higher bar. Worked contexts cover fraud prevention, direct marketing, information security and children; public authorities cannot use the basis for their tasks. Adopted 8 October 2024 for consultation to 20 November 2024; no final version had been published by September 2026, and the March 2026 one-stop-shop case digest applies the same test.

Statements

16 documents, 5 with a written takeaway. Newest first.

Statement 2/2025 on the implementation of the PNR Directive in light of CJEU Judgment C-817/19

[65] · Statement · 14 March 2025

Statement on how Member States should implement the Passenger Name Record Directive after the Court of Justice's judgment in C-817/19: no general retention beyond the initial six months, and after that only for records with an objective link to the Directive's purposes. Air travel and law enforcement.

Statement 1/2025 on Age Assurance

[66] · Statement · 12 February 2025 [READ FROM THE DOCUMENT](#) [CHILDREN](#) [BIOMETRICS](#) [LAWFUL BASIS](#)

Age assurance must respect ten principles, among them a risk-based assessment of proportionality, purpose limitation and data minimisation, effectiveness, lawfulness, fairness and transparency, data protection by design and by default, security and accountability. The statement applies to service providers and third parties involved in age assurance, and requires them to establish a lawful basis under Article 6, choose the least intrusive method and collect only the age attributes strictly necessary, for instance an over or under threshold signal rather than a date of birth. Map any age gate against the ten principles and record the proportionality assessment.

Statement on the implications of the CJEU judgment C-817/19 on the use of PNR in Member States

[67] · Statement · 13 December 2022

Statement on the Court of Justice's PNR judgment (C-817/19) and its consequences for national implementation. Air travel and law enforcement.

Statement 01/2022 on the announcement of an agreement in principle on a new Trans-Atlantic Data Privacy Framework

[68] · Statement · 06 April 2022 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [TRANSFERS](#)

The political agreement in principle announced on 25 March 2022 was a positive first step but did not constitute a legal framework on which exporters could base transfers to the United States, so controllers and processors had to continue complying with the CJEU's Schrems II judgment of 16 July 2020. The EDPB announced it would examine whether US reforms limit national security collection to what is strictly necessary and proportionate, whether the redress mechanism gives an effective remedy with binding decisions, and whether judicial review of that body exists. The statement was overtaken by Opinion 5/2023 and by the EU-US Data Privacy Framework adequacy decision of 10 July 2023.

Statement 04/2021 on international agreements including transfers

[69] · Statement · 13 April 2021 [READ FROM THE DOCUMENT](#) [TRANSFERS](#) [GOVERNANCE](#)

Member States and Union bodies should review international agreements involving transfers of personal data that were concluded before 24 May 2016 (GDPR) or 6 May 2016 (LED), in fields such as taxation, social security, mutual legal assistance and police cooperation, and align them with Chapter V GDPR, the LED and the Schrems II judgment of 16 July 2020. The statement points to Guidelines 2/2020 on legally binding instruments between public authorities for the safeguards required, and offers the assistance of the national supervisory authorities. Public-sector practitioners should inventory such agreements and check that each carries enforceable rights and effective remedies.

Statement on the end of the Brexit transition period - update 13/01/2021

[70] · Statement · 13 January 2021

Update on the end of the Brexit transition period: the UK became a third country and the bridging period applied until adequacy was adopted. Historical.

Statement on the end of the Brexit transition period

[71] · Statement · 15 December 2020

Statement on the end of the Brexit transition period. Historical; see the UK adequacy decisions.

Statement on the protection of personal data processed in relation with the prevention of money laundering and terrorist financing

[72] · Statement · 15 December 2020

Statement on anti-money-laundering processing: know-your-customer duties must stay proportionate and must not become a general surveillance basis. Financial sector.

Statement on the Court of Justice of the European Union Judgment in Case C-311/18 - Data Protection Commissioner v Facebook Ireland and Maximilian Schrems

[73] · Statement · 17 July 2020 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [TRANSFERS](#)

The Court's invalidation of the Privacy Shield in Case C-311/18 is welcomed as confirming that a level of protection essentially equivalent to the GDPR is required for every transfer. Standard contractual clauses remain valid, but exporter and importer must assess in advance whether the destination country's law allows that level of protection and, where it does not, add safeguards or suspend the transfer or terminate the clauses; supervisory authorities can suspend transfers where no alternative protection exists. Issued on 17 July 2020 as the first EDPB reaction, it calls for a complete EU-US framework and promises further guidance, which followed as the FAQ of 24 July 2020 and Recommendations 01/2020.

Statement on the data protection impact of the interoperability of contact tracing apps

[74] · Statement · 16 June 2020

Statement on the interoperability of Covid-19 contact tracing apps. Historical.

Statement on the processing of personal data in the context of reopening of borders following the COVID-19 outbreak

[75] · Statement · 16 June 2020

Statement on processing personal data when reopening borders after the Covid-19 outbreak. Historical.

Statement on restrictions on data subject rights in connection to the state of emergency in Member States

[76] · Statement · 02 June 2020

Statement on Member States restricting data subject rights during the Covid-19 state of emergency: restrictions must meet Article 23 and stay temporary. Historical.

Statement on the processing of personal data in the context of the COVID-19 outbreak

[77] · Statement · 19 March 2020

Statement that the GDPR does not stand in the way of measures against Covid-19 and sets out the lawful bases employers and authorities can use. Historical.

Statement on privacy implications of mergers

[78] · Statement · 19 February 2020

Statement that mergers of data-rich companies raise data protection issues and that authorities should be consulted in merger control. Policy position.

Statement 2/2019 on the use of personal data in the course of political campaigns

[79] · Statement · 13 March 2019 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [MARKETING](#) [LAWFUL BASIS](#)

Ahead of the 2019 European Parliament elections the Board set out how the GDPR applies to political parties, coalitions and candidates that profile and target voters. Political opinions are special category data whose processing is prohibited unless a narrow condition such as explicit consent applies; data people have made public stays subject to the transparency, purpose and lawfulness rules; and profiling tied to targeted campaign messaging can produce similarly significant effects, so it is in principle lawful only with valid explicit consent, and voters must be told why they receive a message. Campaign data teams should treat voter profiling as needing explicit consent and explain targeting to recipients.

Statement of the EDPB on the data protection impacts of economic concentration**[80]** · Statement · 27 August 2018

Statement that economic concentration in data-driven markets has data protection impacts that competition review should take into account. Policy position.

Opinions of the Board (Article 64)

257 documents, 5 with a written takeaway. Newest first.

Opinion 20/2026 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the Fluor Group

[81] · Opinion of the Board · 07 July 2026

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of Fluor Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 21/2026 on the draft decision of the Irish Supervisory Authority regarding the Controller Binding Corporate Rules of the Flutter Group

[82] · Opinion of the Board · 07 July 2026

Favourable opinion on the draft decision of the Irish authority approving the controller binding corporate rules of Flutter Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 18/2026 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the Rubrik Group

[83] · Opinion of the Board · 08 June 2026

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of Rubrik Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 19/2026 on the draft decision of the Dutch Supervisory Authority regarding the Processor Binding Corporate Rules of the Rubrik Group

[84] · Opinion of the Board · 08 June 2026

Favourable opinion on the draft decision of the Dutch authority approving the processor binding corporate rules of Rubrik Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 16/2026 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the Infor Group

[85] · Opinion of the Board · 11 May 2026

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of Infor Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 17/2026 on the draft decision of the Dutch Supervisory Authority regarding the Processor Binding Corporate Rules of the Infor Group

[86] · Opinion of the Board · 11 May 2026

Favourable opinion on the draft decision of the Dutch authority approving the processor binding corporate rules of Infor Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 10/2026 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the SLB Group

[87] · Opinion of the Board · 27 April 2026

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of SLB Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 11/2026 on the draft decision of the Belgian Supervisory Authority regarding the Controller Binding Corporate Rules of the Kuwait Petroleum Group

[88] · Opinion of the Board · 27 April 2026

Favourable opinion on the draft decision of the Belgian authority approving the controller binding corporate rules of Kuwait Petroleum Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 12/2026 on the draft decision of the Spanish Supervisory Authority regarding the Controller Binding Corporate Rules of the Santander Group

[89] · Opinion of the Board · 27 April 2026

Favourable opinion on the draft decision of the Spanish authority approving the controller binding corporate rules of Santander Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 9/2026 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the Jacobs Douwe Egberts Group

[90] · Opinion of the Board · 27 April 2026

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of Jacobs Douwe Egberts Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 14/2026 on the Europrivacy certification criteria regarding their approval by the Board as European Data Protection Seal pursuant to Article 42.5 GDPR

[91] · Opinion of the Board · 16 April 2026

Opinion under Article 42(5) on approving the Europrivacy certification criteria as a European Data Protection Seal, valid across the EEA. Relevant if you or a supplier holds or seeks that certification.

Opinion 15/2026 on the Europrivacy certification criteria regarding their approval by the Board as European Data Protection Seal to be used as tool for transfers pursuant to Articles 42 and 46 GDPR

[92] · Opinion of the Board · 16 April 2026

Opinion under Articles 42(5) and 46(2)(f) approving the Europrivacy certification criteria as a European Data Protection Seal usable as a tool for transfers to third countries, the first certification approved for that purpose (April 2026). Relevant to exporters considering certification instead of standard contractual clauses, and to importers seeking it.

Opinion 13/2026 on the draft decision of the Office of the Data Protection Ombudsman (FI SA) regarding the approval of the requirement for accreditation of a certification body pursuant to Article 43(3) GDPR

[93] · Opinion of the Board · 15 April 2026

Opinion on the draft accreditation requirements for certification bodies submitted by the FI supervisory authority under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 7/2026 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the BCD Travel Group

[94] · Opinion of the Board · 10 March 2026

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of BCD Travel Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 8/2026 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the IBM Group

[95] · Opinion of the Board · 10 March 2026

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of IBM Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 06/2026 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the ABN AMRO Bank Group**[96]** · Opinion of the Board · 10 February 2026

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of ABN AMRO Bank Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 5/2026 on the draft decision of the Dutch Supervisory Authority regarding the Processor Binding Corporate Rules of the Arcadis Group**[97]** · Opinion of the Board · 10 February 2026

Favourable opinion on the draft decision of the Dutch authority approving the processor binding corporate rules of Arcadis Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 1/2026 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the Heineken Group**[98]** · Opinion of the Board · 05 February 2026

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of Heineken Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 2/2026 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the AkzoNobel Group**[99]** · Opinion of the Board · 05 February 2026

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of AkzoNobel Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 3/2026 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the FrieslandCampina Group**[100]** · Opinion of the Board · 05 February 2026

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of FrieslandCampina Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 4/2026 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the ABB Group**[101]** · Opinion of the Board · 05 February 2026

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of ABB Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 29/2025 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the Illumina Group**[102]** · Opinion of the Board · 02 December 2025

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of Illumina Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 30/2025 on the draft decision of the Dutch Supervisory Authority regarding the Processor Binding Corporate Rules of the Illumina Group**[103]** · Opinion of the Board · 02 December 2025

Favourable opinion on the draft decision of the Dutch authority approving the processor binding corporate rules of Illumina Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 31/2025 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the Arcadis Group**[104]** · Opinion of the Board · 02 December 2025

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of Arcadis Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 32/2025 on the draft decision of the Irish Supervisory Authority regarding the Controller Binding Corporate Rules of the CSG Group**[105]** · Opinion of the Board · 02 December 2025

Favourable opinion on the draft decision of the Irish authority approving the controller binding corporate rules of CSG Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 33/2025 on the draft decision of the Irish Supervisory Authority regarding the Processor Binding Corporate Rules of the CSG Group**[106]** · Opinion of the Board · 02 December 2025

Favourable opinion on the draft decision of the Irish authority approving the processor binding corporate rules of CSG Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 34/2025 on the draft decision of the Greek Supervisory Authority regarding C.E.C.L certification criteria**[107]** · Opinion of the Board · 02 December 2025

Opinion under Article 42(5) on national certification criteria submitted by the Greek authority. Relevant if you or a supplier holds or seeks that certification.

Opinion 23/2025 on the draft decision of the French Supervisory Authority regarding the Controller Binding Corporate Rules of the Tessi Group**[108]** · Opinion of the Board · 07 October 2025

Favourable opinion on the draft decision of the French authority approving the controller binding corporate rules of Tessi Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 24/2025 on the decision of the Polish Supervisory Authority regarding the Controller Binding Corporate Rules of the BOX Group**[109]** · Opinion of the Board · 07 October 2025

Favourable opinion on the draft decision of the Polish authority approving the controller binding corporate rules of BOX Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 25/2025 on the decision of the Polish Supervisory Authority regarding the Processor Binding Corporate Rules of the BOX Group**[110]** · Opinion of the Board · 07 October 2025

Favourable opinion on the draft decision of the Polish authority approving the processor binding corporate rules of BOX Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 17/2025 on the draft decision of the Irish Supervisory Authority regarding the Controller Binding Corporate Rules of the Shopify Group**[111]** · Opinion of the Board · 11 September 2025

Favourable opinion on the draft decision of the Irish authority approving the controller binding corporate rules of Shopify Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 18/2025 on the draft decision of the Irish Supervisory Authority regarding the Processor Binding Corporate Rules of the Shopify Group**[112]** · Opinion of the Board · 11 September 2025

Favourable opinion on the draft decision of the Irish authority approving the processor binding corporate rules of Shopify Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 19/2025 on the draft decision of the Luxembourg Supervisory Authority regarding the Controller Binding Corporate Rules of the Northern Trust Group**[113]** · Opinion of the Board · 11 September 2025

Favourable opinion on the draft decision of the Luxembourg authority approving the controller binding corporate rules of Northern Trust Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 20/2025 on the draft decision of the Luxembourg Supervisory Authority regarding the Processor Binding Corporate Rules of the Northern Trust Group**[114]** · Opinion of the Board · 11 September 2025

Favourable opinion on the draft decision of the Luxembourg authority approving the processor binding corporate rules of Northern Trust Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 21/2025 on the draft decision of the Norwegian Supervisory Authority regarding the Controller Binding Corporate Rules of the Mowi Group**[115]** · Opinion of the Board · 11 September 2025

Favourable opinion on the draft decision of the Norwegian authority approving the controller binding corporate rules of Mowi Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 22/2025 on the draft decision of the Luxembourg Supervisory Authority regarding the Controller Binding Corporate Rules of the Ferrero Group**[116]** · Opinion of the Board · 11 September 2025

Favourable opinion on the draft decision of the Luxembourg authority approving the controller binding corporate rules of Ferrero Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 13/2025 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the Aramex Group**[117]** · Opinion of the Board · 14 July 2025

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of Aramex Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 15/2025 on the draft decision of the Austrian Supervisory Authority (AT SA) regarding the certification criteria of BDO Consulting GmbH**[118]** · Opinion of the Board · 14 July 2025

Opinion under Article 42(5) on national certification criteria submitted by the Austrian authority. Relevant if you or a supplier holds or seeks that certification.

Opinion 16/2025 regarding the draft decision of the German North Rhine Westphalia Supervisory Authority regarding Trusted Site Data Privacy (TÜV IT) certification criteria**[119]** · Opinion of the Board · 14 July 2025

Opinion under Article 42(5) on national certification criteria submitted by the German North Rhine Westphalia authority. Relevant if you or a supplier holds or seeks that certification.

Opinion 14/2025 on the draft decision of the Norwegian Supervisory Authority regarding the Controller Binding Corporate Rules of the Wilh. Wilhelmsen Group

[120] · Opinion of the Board · 10 July 2025

Favourable opinion on the draft decision of the Norwegian authority approving the controller binding corporate rules of Wilh. Wilhelmsen Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 11/2025 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the Signify Group

[121] · Opinion of the Board · 06 June 2025

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of Signify Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 12/2025 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the ASML Group

[122] · Opinion of the Board · 06 June 2025

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of ASML Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 10/2025 on the draft decision of the French Supervisory Authority regarding the Controller Binding Corporate Rules of the Worldline Group

[123] · Opinion of the Board · 21 May 2025

Favourable opinion on the draft decision of the French authority approving the controller binding corporate rules of Worldline Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 8/2025 on the draft decision of the Norwegian Supervisory Authority regarding the Controller Binding Corporate Rules of the Statkraft Group

[124] · Opinion of the Board · 21 May 2025

Favourable opinion on the draft decision of the Norwegian authority approving the controller binding corporate rules of Statkraft Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 9/2025 on the draft decision of the French Supervisory Authority regarding the Processor Binding Corporate Rules of the Worldline Group

[125] · Opinion of the Board · 21 May 2025

Favourable opinion on the draft decision of the French authority approving the processor binding corporate rules of Worldline Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 3/2025 on the draft decision of the French Supervisory Authority (FR SA) regarding the "Lexing GDPR certification criteria"

[126] · Opinion of the Board · 14 April 2025

Opinion under Article 42(5) on national certification criteria submitted by the French authority. Relevant if you or a supplier holds or seeks that certification.

Opinion 4/2025 on the draft decision of the Finnish Supervisory Authority regarding the Controller Binding Corporate Rules of the Nokia Group

[127] · Opinion of the Board · 09 April 2025

Favourable opinion on the draft decision of the Finnish authority approving the controller binding corporate rules of Nokia Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 5/2025 on the draft decision of the Finnish Supervisory Authority regarding the Processor Binding Corporate Rules of the Nokia Group

[128] · Opinion of the Board · 09 April 2025

Favourable opinion on the draft decision of the Finnish authority approving the processor binding corporate rules of Nokia Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 2/2025 on the draft decision of the Swedish Supervisory Authority regarding the Controller Binding Corporate Rules of the Alfa Laval Group

[129] · Opinion of the Board · 14 March 2025

Favourable opinion on the draft decision of the Swedish authority approving the controller binding corporate rules of Alfa Laval Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 01/2025 on the draft decision of the French Supervisory Authority regarding the Controller Binding Corporate Rules of the Coface Group

[130] · Opinion of the Board · 21 January 2025

Favourable opinion on the draft decision of the French authority approving the controller binding corporate rules of Coface Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 28/2024 on certain data protection aspects related to the processing of personal data in the context of AI models

[131] · Opinion of the Board · 18 December 2024 [READ FROM THE DOCUMENT](#) [AI](#) [LAWFUL BASIS](#)

AI models trained on personal data are not anonymous in all cases; anonymity requires that the likelihood of extracting personal data from the model, directly or through queries, is insignificant, assessed case by case and documented. Legitimate interest can ground development and deployment only where the three-step test is met: a real and lawful interest, necessity with no less intrusive alternative, and a balancing that weighs data subjects' reasonable expectations and mitigating measures. Unlawful processing in development can affect later deployment unless the model is properly anonymised, and a deploying controller must assess how the model was built. Document anonymity testing and the legitimate interest assessment for every model.

Opinion 24/2024 on the draft decision of the Hesse Supervisory Authority (Germany) regarding the Controller Binding Corporate Rules of the Infosys Group

[132] · Opinion of the Board · 02 December 2024

Favourable opinion on the draft decision of the Hesse authority approving the controller binding corporate rules of Infosys Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 25/2024 on the draft decision of the Hesse Supervisory Authority (Germany) regarding the Processor Binding Corporate Rules of the Infosys Group

[133] · Opinion of the Board · 02 December 2024

Favourable opinion on the draft decision of the Hesse authority approving the processor binding corporate rules of Infosys Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 26/2024 on the draft decision of the DE Bremen Supervisory Authority regarding the "Catalogue of Criteria for the Certification of IT-supported processing of Personal Data pursuant to art 42 GDPR ('GDPR - information privacy standard')" presented

[134] · Opinion of the Board · 02 December 2024

Opinion under Article 42(5) on national certification criteria submitted by the DE Bremen authority. Relevant if you or a supplier holds or seeks that certification.

Opinion 27/2024 on the Brand Compliance criteria of certification regarding their approval by the Board as European Data Protection Seal pursuant to Article 42.5 (GDPR)

[135] · Opinion of the Board · 02 December 2024

Opinion under Article 42(5) on approving the Brand Compliance certification criteria as a European Data Protection Seal, valid across the EEA. Relevant if you or a supplier holds or seeks that certification.

Opinion 23/2024 on the draft decision of the Irish Supervisory Authority regarding the Controller Binding Corporate Rules of the Aptiv Group

[136] · Opinion of the Board · 11 November 2024

Favourable opinion on the draft decision of the Irish authority approving the controller binding corporate rules of Aptiv Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 22/2024 on certain obligations following from the reliance on processor(s) and sub-processor(s)

[137] · Opinion of the Board · 09 October 2024 [READ FROM THE DOCUMENT](#) [CONTROLLER PRO-CESSOR](#) [TRANSFERS](#) [GOVERNANCE](#)

Controllers must have the name, address and contact person of every processor and sub-processor in the chain readily available at all times, and must verify that each provides sufficient guarantees, with the extent of verification scaling with the risk of the processing. Processors must flow identical obligations down to sub-processors, but the controller need not systematically review sub-processing contracts; it decides case by case whether doing so is needed for accountability. The controller remains responsible for transfers made by processors and sub-processors and needs the transfer mapping and legal grounds documented. Requested by the Danish supervisory authority; use it to rebuild sub-processor inventories and due diligence.

Opinion 20/2024 on the draft decision of the North Rhine-Westphalian Supervisory Authority regarding the Controller Binding Corporate Rules of the Viega Group

[138] · Opinion of the Board · 17 September 2024

Favourable opinion on the draft decision of the North Rhine-Westphalian authority approving the controller binding corporate rules of Viega Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 21/2024 on the draft decision of the French Supervisory Authority regarding the Processor Binding Corporate Rules of the Talan Group

[139] · Opinion of the Board · 17 September 2024

Favourable opinion on the draft decision of the French authority approving the processor binding corporate rules of Talan Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 18/2024 on the draft decision of the Austrian Supervisory Authority regarding DSGVO-zt GmbH certification criteria

[140] · Opinion of the Board · 18 July 2024

Opinion under Article 42(5) on national certification criteria submitted by the Austrian authority. Relevant if you or a supplier holds or seeks that certification.

Opinion 19/2024 on the EuroPrise criteria of certification regarding their approval by the Board as European Data Protection Seal pursuant to Article 42.5 (GDPR)

[141] · Opinion of the Board · 18 July 2024

Opinion under Article 42(5) on approving the EuroPrise certification criteria as a European Data Protection Seal, valid across the EEA. Relevant if you or a supplier holds or seeks that certification.

Opinion 14/2024 on the draft decision of the Estonian Supervisory Authority regarding the Processor Binding Corporate Rules of the Mercans Group

[142] · Opinion of the Board · 16 July 2024

Favourable opinion on the draft decision of the Estonian authority approving the processor binding corporate rules of Mercans Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 15/2024 on the draft decision of the Spanish Supervisory Authority regarding the Processor Binding Corporate Rules of the AVATURE Group**[143]** · Opinion of the Board · 16 July 2024

Favourable opinion on the draft decision of the Spanish authority approving the processor binding corporate rules of AVATURE Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 16/2024 on the draft decision of the Spanish Supervisory Authority regarding the Controller Binding Corporate Rules of the AVATURE Group**[144]** · Opinion of the Board · 16 July 2024

Favourable opinion on the draft decision of the Spanish authority approving the controller binding corporate rules of AVATURE Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 17/2024 on the draft decision of the Spanish Supervisory Authority regarding the Controller Binding Corporate Rules of the FCC Group**[145]** · Opinion of the Board · 16 July 2024

Favourable opinion on the draft decision of the Spanish authority approving the controller binding corporate rules of FCC Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 12/2024 on the draft decision of the French Supervisory Authority regarding the "Code of Conduct for Service Providers in Clinical Research" submitted by EUCROF**[146]** · Opinion of the Board · 18 June 2024

Opinion under Article 40(7) on the Code of Conduct for Service Providers in Clinical Research, on the draft decision of the French authority. Adherence is voluntary and sector-specific; relevant if you or a supplier claims to follow it.

Opinion 13/2024 on the draft decision of the Supervisory Authority of Liechtenstein regarding the Controller Binding Corporate Rules of the Ivoclar Vivadent Group**[147]** · Opinion of the Board · 18 June 2024

Favourable opinion on the draft decision of the national authority approving the controller binding corporate rules of Ivoclar Vivadent Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 10/2024 on the draft decision of the competent supervisory authority of Sweden regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)**[148]** · Opinion of the Board · 03 June 2024

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Sweden under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 9/2024 on the draft decision of the Romanian Supervisory Authority regarding the Processor Binding Corporate Rules of the Genpact Group**[149]** · Opinion of the Board · 27 May 2024

Favourable opinion on the draft decision of the Romanian authority approving the processor binding corporate rules of Genpact Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 11/2024 on the use of facial recognition to streamline airport passengers' flow (compatibility with Articles 5(1)(e) and(f), 25 and 32 GDPR)

[150] · Opinion of the Board · 24 May 2024

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[BIOMETRICS](#)

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Facial recognition to speed passengers through airport checkpoints is compatible with Articles 5(1)(e), 5(1)(f), 25 and 32 GDPR only where the biometric template stays under the passenger's control: stored solely on the passenger's device, or stored centrally at the airport encrypted with a key held only by the passenger. Central databases under airport operator control and cloud storage under airline control cannot satisfy data protection by design and breach the security and storage limitation requirements. Requested by the French supervisory authority and adopted 23 May 2024, it guides airport operators, airlines and their authorities; any biometric passenger flow project must be built around on-device storage or passenger-held keys.

Opinion 7/2024 on the draft decision of the German North Rhine Westphalia Supervisory Authority regarding the EU Cloud Service Data Protection (Auditor) certification criteria

[151] · Opinion of the Board · 19 April 2024

Opinion under Article 42(5) on national certification criteria submitted by the German North Rhine Westphalia authority. Relevant if you or a supplier holds or seeks that certification.

Opinion 6/2024 on the draft list of the Latvian SA on pro-processing operations exempt from the data protection impact assessment requirement (Art. 35.5 GDPR)

[152] · Opinion of the Board · 18 April 2024

Reviews the draft list from the Latvian authority of processing operations exempt from a DPIA under Article 35(5), asking for the list to stay narrow and consistent with the WP248 criteria.

Opinion 08/2024 on Valid Consent in the Context of Consent or Pay Models Implemented by Large Online Platforms

[153] · Opinion of the Board · 17 April 2024

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[CONSENT](#)

[COOKIES TRACKING](#)

[MARKETING](#)

Large online platforms that offer users only a choice between consenting to behavioural advertising or paying a fee will, in most cases, not obtain valid consent. Consent must be freely given, so platforms should offer a further free alternative without behavioural advertising, for instance contextual advertising using minimal personal data, and must assess detriment, lock-in effects, the power imbalance flowing from market position and whether any fee is appropriate; the controller bears the burden of demonstrating all of this. Requested by the Dutch, Norwegian and Hamburg authorities and adopted 17 April 2024, with a corrigendum in October 2024, it addresses large online platforms only.

Opinion 05/2024 on the draft decision of the Spanish Supervisory Authority regarding the Controller Binding Corporate Rules of the MAPFRE Group

[154] · Opinion of the Board · 14 March 2024

Favourable opinion on the draft decision of the Spanish authority approving the controller binding corporate rules of MAPFRE Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 04/2024 on the notion of main establishment of a controller in the Union under Art. 4.16(a) GDPR

[155] · Opinion of the Board · 13 February 2024

Opinion on when a controller has a main establishment in the Union under Article 4(16)(a): the place of central administration counts only if it actually takes the decisions on purposes and means, otherwise the one-stop-shop does not apply. Procedural, for authorities deciding competence.

Opinion 2/2024 on the draft decision of the Spanish Supervisory Authority regarding the Controller Binding Corporate Rules of the TELEFÓNICA Group

[156] · Opinion of the Board · 13 February 2024

Favourable opinion on the draft decision of the Spanish authority approving the controller binding corporate rules of TELEFÓNICA Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 3/2024 on the draft decision of the Irish Supervisory Authority regarding the Processor Binding Corporate Rules of the Accenture Group

[157] · Opinion of the Board · 13 February 2024

Favourable opinion on the draft decision of the Irish authority approving the processor binding corporate rules of Accenture Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 01/2024 on the draft decision of the Dutch Supervisory Authority regarding the Processor Binding Corporate Rules of the Booking.com Group

[158] · Opinion of the Board · 16 January 2024

Favourable opinion on the draft decision of the Dutch authority approving the processor binding corporate rules of Booking.com Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 36/2023 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the Booking.com Group

[159] · Opinion of the Board · 28 December 2023

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of Booking.com Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 37/2023 on the draft decision of the competent supervisory authority of Luxembourg regarding the approval of the requirements for accreditation of a certification body pursuant to Art. 43.3

[160] · Opinion of the Board · 21 December 2023

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Luxembourg under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 38/2023 on the draft decision of the competent supervisory authority of Slovenian regarding the approval of the requirements for accreditation of a certification body pursuant to Art. 43.3

[161] · Opinion of the Board · 21 December 2023

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Slovenian under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 33/2023 on the draft decision of the Hesse Supervisory Authority (Germany) regarding the Controller Binding Corporate Rules of the Cerner Group

[162] · Opinion of the Board · 20 December 2023

Favourable opinion on the draft decision of the Hesse authority approving the controller binding corporate rules of Cerner Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 34/2023 on the draft decision of the Hesse Supervisory Authority (Germany) regarding the Processor Binding Corporate Rules of the Cerner Group

[163] · Opinion of the Board · 20 December 2023

Favourable opinion on the draft decision of the Hesse authority approving the processor binding corporate rules of Cerner Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 35/2023 on the draft decision of the Danish Supervisory Authority regarding the Controller Binding Corporate Rules of the Carlsberg Group

[164] · Opinion of the Board · 20 December 2023

Favourable opinion on the draft decision of the Danish authority approving the controller binding corporate rules of Carlsberg Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 26/2023 on the draft decision of the Romanian Supervisory Authority regarding the Processor Binding Corporate Rules of the OSF Global Services Group

[165] · Opinion of the Board · 28 November 2023

Favourable opinion on the draft decision of the Romanian authority approving the processor binding corporate rules of OSF Global Services Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 27/2023 on the draft decision of the French Supervisory Authority regarding the Processor Binding Corporate Rules of the Tessi Group

[166] · Opinion of the Board · 28 November 2023

Favourable opinion on the draft decision of the French authority approving the processor binding corporate rules of Tessi Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 28/2023 on the draft decision of the French Supervisory Authority regarding the Controller Binding Corporate Rules of the Servier Group

[167] · Opinion of the Board · 28 November 2023

Favourable opinion on the draft decision of the French authority approving the controller binding corporate rules of Servier Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 29/2023 on the draft decision of the French Supervisory Authority regarding the Controller Binding Corporate Rules of the Sodexo Group

[168] · Opinion of the Board · 28 November 2023

Favourable opinion on the draft decision of the French authority approving the controller binding corporate rules of Sodexo Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 30/2023 on the draft decision of the French Supervisory Authority regarding the Processor Binding Corporate Rules of the Sodexo Group

[169] · Opinion of the Board · 28 November 2023

Favourable opinion on the draft decision of the French authority approving the processor binding corporate rules of Sodexo Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 31/2023 on the draft decision of the French Supervisory Authority regarding the Controller Binding Corporate Rules of the Thalès Group

[170] · Opinion of the Board · 28 November 2023

Favourable opinion on the draft decision of the French authority approving the controller binding corporate rules of Thalès Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 32/2023 on the draft decision of the French Supervisory Authority regarding the Processor Binding Corporate Rules of the Thalès Group

[171] · Opinion of the Board · 28 November 2023

Favourable opinion on the draft decision of the French authority approving the processor binding corporate rules of Thalès Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 19/2023 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the American Express Global Business Travel Group

[172] · Opinion of the Board · 16 November 2023

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of American Express Global Business Travel Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 20/2023 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the Comcast Corporation Group

[173] · Opinion of the Board · 16 November 2023

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of Comcast Corporation Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 21/2023 on the draft decision of the Belgian Supervisory Authority regarding the Processor Binding Corporate Rules of the UPS Group

[174] · Opinion of the Board · 16 November 2023

Favourable opinion on the draft decision of the Belgian authority approving the processor binding corporate rules of UPS Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 22/2023 on the draft decision of the Belgian Supervisory Authority regarding the Controller Binding Corporate Rules for employee data of the UPS Group

[175] · Opinion of the Board · 16 November 2023

Favourable opinion on the draft decision of the Belgian authority approving the controller binding corporate rules of a corporate group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 23/2023 on the draft decision of the Belgian Supervisory Authority regarding the Controller Binding Corporate Rules for customer data of the UPS Group

[176] · Opinion of the Board · 16 November 2023

Favourable opinion on the draft decision of the Belgian authority approving the controller binding corporate rules of a corporate group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 24/2023 on the draft decision of the French Supervisory Authority regarding the Controller Binding Corporate Rules of the Nestlé Group

[177] · Opinion of the Board · 16 November 2023

Favourable opinion on the draft decision of the French authority approving the controller binding corporate rules of Nestlé Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 25/2023 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of the SHV Holding N.V. Group

[178] · Opinion of the Board · 16 November 2023

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of SHV Holding N.V. Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 18/2023 on the draft decision of the Belgian Supervisory Authority regarding the Processor Binding Corporate Rules of the Collibra Group

[179] · Opinion of the Board · 07 November 2023

Favourable opinion on the draft decision of the Belgian authority approving the processor binding corporate rules of Collibra Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 16/2023 on the draft decision of the Irish Supervisory Authority regarding the Controller Binding Corporate Rules of the Informatica Group

[180] · Opinion of the Board · 28 September 2023

Favourable opinion on the draft decision of the Irish authority approving the controller binding corporate rules of Informatica Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 17/2023 on the draft decision of the Irish Supervisory Authority regarding the Processor Binding Corporate Rules of the Informatica Group

[181] · Opinion of the Board · 28 September 2023

Favourable opinion on the draft decision of the Irish authority approving the processor binding corporate rules of Informatica Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 15/2023 on the draft decision of the Dutch Supervisory Authority regarding the Brand Compliance certification criteria

[182] · Opinion of the Board · 19 September 2023

Opinion under Article 42(5) on national certification criteria submitted by the Dutch authority. Relevant if you or a supplier holds or seeks that certification.

Opinion 14/2023 on the draft decision of the Danish Supervisory Authority regarding the Controller Binding Corporate Rules of the Vestas Wind Systems Group

[183] · Opinion of the Board · 27 July 2023

Favourable opinion on the draft decision of the Danish authority approving the controller binding corporate rules of Vestas Wind Systems Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 11/2023 on the draft decision of the competent supervisory authority of Sweden regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[184] · Opinion of the Board · 11 July 2023

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Sweden under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 12/2023 on the draft decision of the competent supervisory authority of Cyprus regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[185] · Opinion of the Board · 11 July 2023

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Cyprus under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 13/2023 on the draft decision of the competent supervisory authority of Croatia regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[186] · Opinion of the Board · 11 July 2023

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Croatia under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 10/2023 on the draft decision of the Spanish Supervisory Authority regarding the Controller Binding Corporate Rules of the PROSEGUR Group

[187] · Opinion of the Board · 30 June 2023

Favourable opinion on the draft decision of the Spanish authority approving the controller binding corporate rules of PROSEGUR Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 9/2023 on the draft decision of the Italian Supervisory Authority regarding the Controller Binding Corporate Rules of Vertiv

[188] · Opinion of the Board · 17 May 2023

Favourable opinion on the draft decision of the Italian authority approving the controller binding corporate rules of Vertiv under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 7/2023 on the draft decision of the Irish Supervisory Authority regarding the Controller Binding Corporate Rules of Autodesk Group**[189]** · Opinion of the Board · 05 May 2023

Favourable opinion on the draft decision of the Irish authority approving the controller binding corporate rules of Autodesk Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 8/2023 on the draft decision of the Irish Supervisory Authority regarding the Processor Binding Corporate Rules of Autodesk Group**[190]** · Opinion of the Board · 05 May 2023

Favourable opinion on the draft decision of the Irish authority approving the processor binding corporate rules of Autodesk Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 6/2023 on the draft decision of the Danish Supervisory Authority regarding the Controller Binding Corporate Rules of Royal Greenland Group**[191]** · Opinion of the Board · 23 March 2023

Favourable opinion on the draft decision of the Danish authority approving the controller binding corporate rules of Royal Greenland Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 02/2023 on the draft decision of the competent supervisory authority of Latvia regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to Article 41 GDPR**[192]** · Opinion of the Board · 17 February 2023

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Latvia under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 03/2023 on the draft decision of the competent supervisory authority of Romania regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR**[193]** · Opinion of the Board · 17 February 2023

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Romania under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 1/2023 on the draft decision of the competent supervisory authority of Croatia regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to Article 41 GDPR**[194]** · Opinion of the Board · 17 February 2023

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Croatia under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 4/2023 on the draft decision of the competent supervisory authority of Malta regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)**[195]** · Opinion of the Board · 17 February 2023

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Malta under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 32/2022 on the draft decision of the Danish Supervisory Authority regarding the Controller Binding Corporate Rules of the Ramboll Group**[196]** · Opinion of the Board · 06 December 2022

Favourable opinion on the draft decision of the Danish authority approving the controller binding corporate rules of Ramboll Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 30/2022 on the draft decision of the Slovak Supervisory Authority regarding the Controller Binding Corporate Rules of Piano Group**[197]** · Opinion of the Board · 28 November 2022

Favourable opinion on the draft decision of the Slovak authority approving the controller binding corporate rules of Piano Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 31/2022 on the draft decision of the Slovak Supervisory Authority regarding the Processor Binding Corporate Rules of Piano Group**[198]** · Opinion of the Board · 28 November 2022

Favourable opinion on the draft decision of the Slovak authority approving the processor binding corporate rules of Piano Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 29/2022 on the draft decision of the Danish Supervisory Authority regarding the Controller Binding Corporate Rules of the DSV Group**[199]** · Opinion of the Board · 18 November 2022

Favourable opinion on the draft decision of the Danish authority approving the controller binding corporate rules of DSV Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 28/2022 on the Europrivacy criteria of certification regarding their approval by the Board as European Data Protection Seal pursuant to Article 42.5 (GDPR)**[200]** · Opinion of the Board · 10 October 2022

Opinion under Article 42(5) on approving the Europrivacy certification criteria as a European Data Protection Seal, valid across the EEA. Relevant if you or a supplier holds or seeks that certification.

Opinion 27/2022 on the draft decision of the French Supervisory Authority regarding the Processor Binding Corporate Rules of LEYTON Group**[201]** · Opinion of the Board · 07 October 2022

Favourable opinion on the draft decision of the French authority approving the processor binding corporate rules of LEYTON Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 26/2022 on the draft decision of the Data Protection Authority of Bavaria for the Private Sector regarding the Controller Binding Corporate Rules of the Munich Re Reinsurance Group**[202]** · Opinion of the Board · 30 September 2022

Favourable opinion on the draft decision of the national authority approving the controller binding corporate rules of Munich Re Reinsurance Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 25/2022 regarding the European Privacy Seal (EuroPriSe) certification criteria for the certification of processing operations by processors**[203]** · Opinion of the Board · 19 September 2022

Opinion under Article 42(5) on national certification criteria submitted by the national authority. Relevant if you or a supplier holds or seeks that certification.

Opinion 22/2022 on the draft decision of the Liechtenstein Supervisory Authority regarding the Controller Binding Corporate Rules of Hilti Group**[204]** · Opinion of the Board · 07 September 2022

Favourable opinion on the draft decision of the Liechtenstein authority approving the controller binding corporate rules of Hilti Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 23/2022 on the draft decision of the Swedish Supervisory Authority regarding the Controller Binding Corporate Rules of the Samres Group**[205]** · Opinion of the Board · 07 September 2022

Favourable opinion on the draft decision of the Swedish authority approving the controller binding corporate rules of Samres Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 24/2022 on the draft decision of the Swedish Supervisory Authority regarding the Processor Binding Corporate Rules of the Samres Group**[206]** · Opinion of the Board · 07 September 2022

Favourable opinion on the draft decision of the Swedish authority approving the processor binding corporate rules of Samres Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 18/2022 on the draft decision of the Baden-Württemberg (Germany) Supervisory Authority regarding the Controller Binding Corporate Rules of the Daimler Truck Group**[207]** · Opinion of the Board · 26 August 2022

Favourable opinion on the draft decision of the national authority approving the controller binding corporate rules of Daimler Truck Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 19/2022 on the draft decision of the Baden-Württemberg (Germany) Supervisory Authority regarding the Controller Binding Corporate Rules of the Mercedes-Benz Group**[208]** · Opinion of the Board · 26 August 2022

Favourable opinion on the draft decision of the national authority approving the controller binding corporate rules of Mercedes-Benz Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 20/2022 on the draft decision of the Irish Supervisory Authority regarding the Controller Binding Corporate Rules of the Ellucian Group**[209]** · Opinion of the Board · 26 August 2022

Favourable opinion on the draft decision of the Irish authority approving the controller binding corporate rules of Ellucian Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 21/2022 on the draft decision of the Irish Supervisory Authority regarding the Processor Binding Corporate Rules of the Ellucian Group**[210]** · Opinion of the Board · 26 August 2022

Favourable opinion on the draft decision of the Irish authority approving the processor binding corporate rules of Ellucian Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 17/2022 on the draft decision of the Spanish Supervisory Authority regarding the Controller Binding Corporate Rules of the ANTOLIN Group**[211]** · Opinion of the Board · 01 August 2022

Favourable opinion on the draft decision of the Spanish authority approving the controller binding corporate rules of ANTOLIN Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 11/2022 on the draft decision of the competent supervisory authority of Poland regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)**[212]** · Opinion of the Board · 04 July 2022

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Poland under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 12/2022 on the draft decision of the competent supervisory authority of France regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[213] · Opinion of the Board · 04 July 2022

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of France under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 13/2022 on the draft decision of the competent supervisory authority of Bulgaria regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[214] · Opinion of the Board · 04 July 2022

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Bulgaria under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 14/2022 on the draft decision of the competent supervisory authority of Bulgaria regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[215] · Opinion of the Board · 04 July 2022

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Bulgaria under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 15/2022 on the draft decision of the competent supervisory authority of Luxembourg regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[216] · Opinion of the Board · 04 July 2022

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Luxembourg under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 16/2022 on the draft decision of the competent supervisory authority of Slovenia regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[217] · Opinion of the Board · 04 July 2022

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Slovenia under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 10/2022 on the draft decision of the Hesse Supervisory Authority (Germany) regarding the Controller Binding Corporate Rules of Fresenius Group

[218] · Opinion of the Board · 16 June 2022

Favourable opinion on the draft decision of the Hesse authority approving the controller binding corporate rules of Fresenius Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 08/2022 on the draft decision of the Danish Supervisory Authority regarding the Controller Binding Corporate Rules of Bioclinica Group

[219] · Opinion of the Board · 04 May 2022

Favourable opinion on the draft decision of the Danish authority approving the controller binding corporate rules of Bioclinica Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 09/2022 on the draft decision of the Danish Supervisory Authority regarding the Processor Binding Corporate Rules of Bioclinica Group

[220] · Opinion of the Board · 04 May 2022

Favourable opinion on the draft decision of the Danish authority approving the processor binding corporate rules of Bioclinica Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 05/2022 on the draft decision of the Danish Supervisory Authority regarding the Controller Binding Corporate Rules of the Lundbeck Group

[221] · Opinion of the Board · 19 April 2022

Favourable opinion on the draft decision of the Danish authority approving the controller binding corporate rules of Lundbeck Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 06/2022 on the draft decision of the Irish Supervisory Authority regarding the Controller Binding Corporate Rules of Groupon International Limited

[222] · Opinion of the Board · 19 April 2022

Favourable opinion on the draft decision of the Irish authority approving the controller binding corporate rules of Groupon International Limited under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 07/2022 on the draft decision of the Hungarian Supervisory Authority regarding the Controller Binding Corporate Rules of MOL Group

[223] · Opinion of the Board · 19 April 2022

Favourable opinion on the draft decision of the Hungarian authority approving the controller binding corporate rules of MOL Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 04/2022 on the draft decision of the Danish Supervisory Authority regarding the Controller Binding Corporate Rules of Norican Group

[224] · Opinion of the Board · 18 March 2022

Favourable opinion on the draft decision of the Danish authority approving the controller binding corporate rules of Norican Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 1/2022 on the draft decision of the Luxembourg Supervisory Authority regarding the GDPR - CARPA certification criteria

[225] · Opinion of the Board · 08 February 2022

Opinion under Article 42(5) on national certification criteria submitted by the Luxembourg authority. Relevant if you or a supplier holds or seeks that certification.

Opinion 02/2022 on the draft decision of the French Supervisory Authority regarding the Controller Binding Corporate Rules of the WEBHELP Group

[226] · Opinion of the Board · 07 February 2022

Favourable opinion on the draft decision of the French authority approving the controller binding corporate rules of WEBHELP Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 03/2022 on the draft decision of the French Supervisory Authority regarding the Processor Binding Corporate Rules of the WEBHELP Group

[227] · Opinion of the Board · 07 February 2022

Favourable opinion on the draft decision of the French authority approving the processor binding corporate rules of WEBHELP Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 39/2021 on whether Article 58(2)(g) GDPR could serve as a legal basis for a supervisory authority to order ex officio the erasure of personal data, in a situation where such request was not submitted by the data subject

[228] · Opinion of the Board · 14 December 2021

Opinion confirming that a supervisory authority may order erasure of its own motion under Article 58(2)(g), without a data subject request. Enforcement powers.

Opinion 35/2021 on the draft decision of the competent supervisory authority of Belgium regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[229] · Opinion of the Board · 30 November 2021

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Belgium under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 36/2021 on the draft decision of the competent supervisory authority of Norway regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[230] · Opinion of the Board · 30 November 2021

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Norway under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 37/2021 on the draft decision of the competent supervisory authority of Malta regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[231] · Opinion of the Board · 30 November 2021

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Malta under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 38/2021 on the draft decision of the competent supervisory authority of Latvia regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[232] · Opinion of the Board · 20 November 2021

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Latvia under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 33/2021 on the draft decision of the Belgian Supervisory Authority regarding the Controller Binding Corporate Rules of Carrier

[233] · Opinion of the Board · 26 October 2021

Favourable opinion on the draft decision of the Belgian authority approving the controller binding corporate rules of Carrier under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 34/2021 on the draft decision of the Belgian Supervisory Authority regarding the Controller Binding Corporate Rules of Otis

[234] · Opinion of the Board · 26 October 2021

Favourable opinion on the draft decision of the Belgian authority approving the controller binding corporate rules of Otis under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 26/2021 on the draft decision of the Supervisory Authority of North Rhine-Westphalia (Germany) regarding the Controller Binding Corporate Rules of the Internet Initiative Japan Group

[235] · Opinion of the Board · 05 August 2021

Favourable opinion on the draft decision of the national authority approving the controller binding corporate rules of Internet Initiative Japan Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 27/2021 on the draft decision of the Supervisory Authority of North Rhine-Westphalia (Germany) regarding the Processor Binding Corporate Rules of the Internet Initiative Japan Group

[236] · Opinion of the Board · 05 August 2021

Favourable opinion on the draft decision of the national authority approving the processor binding corporate rules of Internet Initiative Japan Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 28/2021 on the draft decision of the Belgian Supervisory Authority regarding the Controller Binding Corporate Rules of Oregon Tool, Inc (formerly "Blount")

[237] · Opinion of the Board · 05 August 2021

Favourable opinion on the draft decision of the Belgian authority approving the controller binding corporate rules of Oregon Tool, Inc (formerly "Blount") under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 29/2021 on the draft decision of the Belgian Supervisory Authority regarding the Processor Binding Corporate Rules of Oregon Tool, Inc (Formerly "Blount")

[238] · Opinion of the Board · 05 August 2021

Favourable opinion on the draft decision of the Belgian authority approving the processor binding corporate rules of Oregon Tool, Inc (Formerly "Blount") under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 30/2021 on the draft decision of the Spanish Supervisory Authority regarding the Controller Binding Corporate Rules of the COLT Group

[239] · Opinion of the Board · 05 August 2021

Favourable opinion on the draft decision of the Spanish authority approving the controller binding corporate rules of COLT Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 31/2021 on the draft decision of the Spanish Supervisory Authority regarding the Processor Binding Corporate Rules of the COLT Group

[240] · Opinion of the Board · 05 August 2021

Favourable opinion on the draft decision of the Spanish authority approving the processor binding corporate rules of COLT Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 23/2021 on the draft decision of the competent supervisory authority of Czech Republic regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[241] · Opinion of the Board · 20 July 2021

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Czech Republic under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 24/2021 on the draft decision of the competent supervisory authority of Slovakia regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[242] · Opinion of the Board · 20 July 2021

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Slovakia under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 25/2021 on the draft decision of the competent supervisory authority of Lithuania regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[243] · Opinion of the Board · 20 July 2021

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Lithuania under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 21/2021 on the draft decision of the French Supervisory Authority regarding the Controller Binding Corporate Rules of the CGI Group

[244] · Opinion of the Board · 01 July 2021

Favourable opinion on the draft decision of the French authority approving the controller binding corporate rules of CGI Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 22/2021 on the draft decision of the French Supervisory Authority regarding the Processor Binding Corporate Rules of the CGI Group**[245]** · Opinion of the Board · 01 July 2021

Favourable opinion on the draft decision of the French authority approving the processor binding corporate rules of CGI Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 19/2021 on the draft decision of the competent supervisory authority of Hungary regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)**[246]** · Opinion of the Board · 01 June 2021

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Hungary under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 16/2021 on the draft decision of the Belgian Supervisory Authority regarding the "EU Data Protection Code of Conduct for Cloud Service Providers" submitted by Scope Europe**[247]** · Opinion of the Board · 19 May 2021

Opinion under Article 40(7) on the EU Data Protection Code of Conduct for Cloud Service Providers, on the draft decision of the Belgian authority. Adherence is voluntary and sector-specific; relevant if you or a supplier claims to follow it.

Opinion 17/2021 on the draft decision of the French Supervisory Authority regarding the European code of conduct submitted by the Cloud Infrastructure Service Providers (CISPE)**[248]** · Opinion of the Board · 19 May 2021

Opinion under Article 40(7) on the cloud services code of conduct, on the draft decision of the French authority. Adherence is voluntary and sector-specific; relevant if you or a supplier claims to follow it.

Opinion 18/2021 on the draft Standard Contractual Clauses submitted by the LT SA (Article 28(8) GDPR)**[249]** · Opinion of the Board · 19 May 2021

Opinion on the draft standard contractual clauses for controller to processor contracts submitted by the national authority under Article 28(8); the authority adopts the final clauses, which are Article 28 templates, not Chapter V transfer clauses. One of the national templates that satisfy Article 28(3) without negotiation.

Opinion 10/2021 on the draft decision of the competent supervisory authority of Hungary regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR**[250]** · Opinion of the Board · 23 March 2021

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Hungary under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 11/2021 on the draft decision of the competent supervisory authority of Norway regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR**[251]** · Opinion of the Board · 23 March 2021

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Norway under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 12/2021 on the draft decision of the competent supervisory authority of Portugal regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)**[252]** · Opinion of the Board · 23 March 2021

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Portugal under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 13/2021 on the draft decision of the competent supervisory authority of Romania regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[253] · Opinion of the Board · 23 March 2021

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Romania under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 06/2021 on the draft decision of the Spanish Supervisory Authority regarding the Processor Binding Corporate Rules of Kumon Group

[254] · Opinion of the Board · 16 February 2021

Favourable opinion on the draft decision of the Spanish authority approving the processor binding corporate rules of Kumon Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 07/2021 on the draft decision of the Spanish Supervisory Authority regarding the Controller Binding Corporate Rules of Kumon Group

[255] · Opinion of the Board · 16 February 2021

Favourable opinion on the draft decision of the Spanish authority approving the controller binding corporate rules of Kumon Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 08/2021 on the draft decision of the Baden-Württemberg Supervisory Authority regarding the Processor Binding Corporate Rules of Luxoft Group

[256] · Opinion of the Board · 16 February 2021

Favourable opinion on the draft decision of the Baden-Württemberg authority approving the processor binding corporate rules of Luxoft Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 09/2021 on the draft decision of the Baden-Württemberg Supervisory Authority regarding the Controller Binding Corporate Rules of Luxoft Group

[257] · Opinion of the Board · 16 February 2021

Favourable opinion on the draft decision of the Baden-Württemberg authority approving the controller binding corporate rules of Luxoft Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 05/2021 on the draft Administrative Arrangement for the transfer of personal data between the Haut Conseil du Commissariat aux Comptes (H3C) and the Public Company Accounting Oversight Board (PCAOB)

[258] · Opinion of the Board · 02 February 2021

Opinion on a draft administrative arrangement for transfers between public bodies under Article 46(3) (b): what the arrangement must contain to give enforceable rights and effective remedies. Public bodies only.

Opinion 01/2021 on the draft decision of the Danish Supervisory Authority regarding the Controller Binding Corporate Rules of Saxo Bank Group

[259] · Opinion of the Board · 22 January 2021

Favourable opinion on the draft decision of the Danish authority approving the controller binding corporate rules of Saxo Bank Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 02/2021 on the draft decision of the Swedish Supervisory Authority regarding the Controller Binding Corporate Rules of Elanders Group

[260] · Opinion of the Board · 22 January 2021

Favourable opinion on the draft decision of the Swedish authority approving the controller binding corporate rules of Elanders Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 03/2021 on the draft decision of the Belgian Supervisory Authority regarding the Controller Binding Corporate Rules of BDO

[261] · Opinion of the Board · 22 January 2021

Favourable opinion on the draft decision of the Belgian authority approving the controller binding corporate rules of BDO under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 04/2021 on the draft decision of the Belgian Supervisory Authority regarding the Processor Binding Corporate Rules of BDO

[262] · Opinion of the Board · 22 January 2021

Favourable opinion on the draft decision of the Belgian authority approving the processor binding corporate rules of BDO under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 32/2020 on the draft decision of the Dutch Supervisory Authority regarding the Controller Binding Corporate Rules of Equinix

[263] · Opinion of the Board · 15 December 2020

Favourable opinion on the draft decision of the Dutch authority approving the controller binding corporate rules of Equinix under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 27/2020 on the draft decision of the Danish Supervisory Authority regarding the Controller Binding Corporate Rules of Coloplast Group

[264] · Opinion of the Board · 08 December 2020

Favourable opinion on the draft decision of the Danish authority approving the controller binding corporate rules of Coloplast Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 28/2020 on the draft decision of the Spanish Supervisory Authority regarding the Controller Binding Corporate Rules of Iberdrola Group

[265] · Opinion of the Board · 08 December 2020

Favourable opinion on the draft decision of the Spanish authority approving the controller binding corporate rules of Iberdrola Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 29/2020 on the draft decision of the Lower Saxony Supervisory Authority regarding the Controller Binding Corporate Rules of Novelis Group

[266] · Opinion of the Board · 08 December 2020

Favourable opinion on the draft decision of the Lower Saxony authority approving the controller binding corporate rules of Novelis Group under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 26/2020 on the draft decision of the competent supervisory authority of Denmark regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[267] · Opinion of the Board · 07 December 2020

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Denmark under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 30/2020 on the draft decision of the competent supervisory authority of Austria regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[268] · Opinion of the Board · 07 December 2020

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Austria under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 31/2020 on the draft decision of the competent supervisory authority of Poland regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[269] · Opinion of the Board · 07 December 2020

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Poland under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 19/2020 on the draft decision of the competent supervisory authority of Denmark regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[270] · Opinion of the Board · 15 August 2020

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Denmark under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 21/2020 on the draft decision of the competent supervisory authority of the Netherlands regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[271] · Opinion of the Board · 15 August 2020

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Netherlands under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 22/2020 on the draft decision of the competent supervisory authority of Greece regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[272] · Opinion of the Board · 15 August 2020

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Greece under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 23/2020 on the draft decision of the competent supervisory authority of Italy regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[273] · Opinion of the Board · 15 August 2020

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Italy under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 25/2020 on the draft decision of the Swedish Supervisory Authority regarding the Controller Binding Corporate Rules of Tetra Pak

[274] · Opinion of the Board · 15 August 2020

Favourable opinion on the draft decision of the Swedish authority approving the controller binding corporate rules of Tetra Pak under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 24/2020 on the draft decision of the Norwegian Supervisory Authority regarding the Controller Binding Corporate Rules of Jotun

[275] · Opinion of the Board · 31 July 2020

Favourable opinion on the draft decision of the Norwegian authority approving the controller binding corporate rules of Jotun under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 18/2020 on the draft decision of the competent supervisory authority of the Netherlands regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[276] · Opinion of the Board · 23 July 2020

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Netherlands under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 20/2020 on the draft decision of the competent supervisory authority of Greece regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[277] · Opinion of the Board · 23 July 2020

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Greece under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 10/2020 on the draft decision of the competent supervisory authorities of Germany regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[278] · Opinion of the Board · 25 May 2020

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Germany under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 11/2020 on the draft decision of the competent supervisory authority of Ireland regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[279] · Opinion of the Board · 25 May 2020

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Ireland under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 12/2020 on the draft decision of the competent supervisory authority of Finland regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[280] · Opinion of the Board · 25 May 2020

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Finland under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 13/2020 on the the draft decision of the competent supervisory authority of Italy regarding the approval of the requirements for accreditation of a code of conduct monitoring body pursuant to article 41 GDPR

[281] · Opinion of the Board · 25 May 2020

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the supervisory authority of Italy under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 14/2020 on the draft decision of the competent supervisory authority of Ireland regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[282] · Opinion of the Board · 25 May 2020

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Ireland under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 15/2020 on the draft decision of the competent supervisory authorities of Germany regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[283] · Opinion of the Board · 25 May 2020

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Germany under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 16/2020 on the draft decision of the competent supervisory authority of the Czech Republic regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 (GDPR)

[284] · Opinion of the Board · 25 May 2020

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Czech Republic under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 17/2020 on the draft Standard Contractual Clauses submitted by the SI SA (Article 28(8) GDPR)

[285] · Opinion of the Board · 19 May 2020

Opinion on the draft standard contractual clauses for controller to processor contracts submitted by the national authority under Article 28(8); the authority adopts the final clauses, which are Article 28 templates, not Chapter V transfer clauses. One of the national templates that satisfy Article 28(3) without negotiation.

Opinion 7/2020 on the draft list of the competent supervisory authority of France regarding the processing operations exempt from the requirement of a data protection impact assessment (Article 35(5) GDPR)

[286] · Opinion of the Board · 22 April 2020

Reviews the draft list from the supervisory authority of France of processing operations exempt from a DPIA under Article 35(5), asking for the list to stay narrow and consistent with the WP248 criteria.

Opinion 8/2020 on the draft decision of the Irish Supervisory Authority regarding the Controller Binding Corporate Rules of Reinsurance Group of America

[287] · Opinion of the Board · 14 April 2020

Favourable opinion on the draft decision of the Irish authority approving the controller binding corporate rules of Reinsurance Group of America under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 9/2020 on the draft decision of the Irish Supervisory Authority regarding the Processor Binding Corporate Rules of Reinsurance Group of America

[288] · Opinion of the Board · 14 April 2020

Favourable opinion on the draft decision of the Irish authority approving the processor binding corporate rules of Reinsurance Group of America under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 4/2020 on the draft decision of the competent supervisory authority of the United Kingdom regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 GDPR

[289] · Opinion of the Board · 31 January 2020

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of United Kingdom under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 5/2020 on the draft decision of the competent supervisory authority of Luxembourg regarding the approval of the requirements for accreditation of a certification body pursuant to Article 43.3 GDPR

[290] · Opinion of the Board · 31 January 2020

Opinion on the draft accreditation requirements for certification bodies submitted by the supervisory authority of Luxembourg under Article 43(3), checked against Guidelines 4/2018; the authority adopts the final requirements. For certification bodies seeking accreditation in that country.

Opinion 6/2020 on the draft decision of the Spanish Supervisory Authority regarding the Controller Binding Corporate Rules of Fujikura Automotive Europe Group (FAE Group)

[291] · Opinion of the Board · 29 January 2020

Favourable opinion on the draft decision of the Spanish authority approving the controller binding corporate rules of Fujikura Automotive Europe Group (FAE Group) under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 1/2020 on the Spanish data protection supervisory authority draft accreditation requirements for a code of conduct monitoring body pursuant to article 41 GDPR

[292] · Opinion of the Board · 28 January 2020

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the Spanish authority under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 2/2020 on the Belgium data protection supervisory authority draft accreditation requirements for a code of conduct monitoring body pursuant to article 41 GDPR

[293] · Opinion of the Board · 28 January 2020

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the Belgium authority under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 3/2020 on the France data protection supervisory authority draft accreditation requirements for a code of conduct monitoring body pursuant to article 41 GDPR

[294] · Opinion of the Board · 28 January 2020

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the France authority under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 17/2019 on the UK data protection supervisory authority draft accreditation requirements for a code of conduct monitoring body pursuant to article 41 GDPR

[295] · Opinion of the Board · 02 December 2019

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the UK authority under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 16/2019 on the draft decision of the Belgian Supervisory Authority regarding the Binding Corporate Rules of ExxonMobil Corporation

[296] · Opinion of the Board · 12 November 2019

Favourable opinion on the draft decision of the Belgian authority approving the controller binding corporate rules of ExxonMobil Corporation under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 15/2019 on the draft decision of the competent supervisory authority of the United Kingdom regarding the Binding Corporate Rules of Equinix Inc.

[297] · Opinion of the Board · 08 October 2019

Favourable opinion on the draft decision of the supervisory authority of United Kingdom approving the controller binding corporate rules of Equinix Inc. under Article 64(1)(f); the authority gives the final approval. Matters only to organisations transferring personal data to or within that group.

Opinion 10/2019 on the draft list of the competent supervisory authority of Cyprus regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35(4) GDPR)

[298] · Opinion of the Board · 12 July 2019

Reviews the draft national list from the supervisory authority of Cyprus of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 11/2019 on the draft list of the competent supervisory authority of the Czech Republic regarding the processing operations exempt from the requirement of a data protection impact assessment (Article 35(5) GDPR)

[299] · Opinion of the Board · 12 July 2019

Reviews the draft list from the supervisory authority of Czech Republic of processing operations exempt from a DPIA under Article 35(5), asking for the list to stay narrow and consistent with the WP248 criteria.

Opinion 12/2019 on the draft list of the competent supervisory authority of Spain regarding the processing operations exempt from the requirement of a data protection impact assessment (Article 35(5) GDPR)

[300] · Opinion of the Board · 12 July 2019

Reviews the draft list from the supervisory authority of Spain of processing operations exempt from a DPIA under Article 35(5), asking for the list to stay narrow and consistent with the WP248 criteria.

Opinion 13/2019 on the draft list of the competent supervisory authority of France regarding the processing operations exempt from the requirement of a data protection impact assessment (Article 35(5) GDPR)

[301] · Opinion of the Board · 12 July 2019

Reviews the draft list from the supervisory authority of France of processing operations exempt from a DPIA under Article 35(5), asking for the list to stay narrow and consistent with the WP248 criteria.

Opinion 14/2019 on the draft Standard Contractual Clauses submitted by the DK SA (Article 28(8) GDPR)

[302] · Opinion of the Board · 12 July 2019

Opinion on the draft standard contractual clauses for controller to processor contracts submitted by the national authority under Article 28(8); the authority adopts the final clauses, which are Article 28 templates, not Chapter V transfer clauses. One of the national templates that satisfy Article 28(3) without negotiation.

Opinion 8/2019 on the competence of a supervisory authority in case of a change in circumstances relating to the main or single establishment

[303] · Opinion of the Board · 12 July 2019

Opinion on which authority stays competent when a controller's main establishment changes during a procedure. Procedure between authorities.

Opinion 9/2019 on the Austrian data protection supervisory authority draft accreditation requirements for a code of conduct monitoring body pursuant to article 41 GDPR

[304] · Opinion of the Board · 12 July 2019

Opinion on the draft accreditation requirements for code of conduct monitoring bodies submitted by the Austrian authority under Article 41(3), checked against Guidelines 1/2019; the authority adopts the final requirements. For code owners and would-be monitoring bodies in that country.

Opinion 5/2019 on the interplay between the ePrivacy Directive and the GDPR, in particular regarding the competence, tasks and powers of data protection authorities

[305] · Opinion of the Board · 12 March 2019

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Processing such as the placing of cookies can fall under both the ePrivacy Directive and the GDPR simultaneously; where the ePrivacy Directive contains a specific rule it takes precedence as *lex specialis*, and everything it does not specifically govern remains subject to the GDPR. A data protection authority keeps its full GDPR competence over such processing, but it can enforce the ePrivacy rules themselves only where national law makes it the competent body, and any GDPR decision must rest on GDPR grounds, with ePrivacy breaches usable as factual elements. Practitioners should expect DPAs to weigh cookie consent failures when assessing GDPR lawfulness.

Opinion 6/2019 on the draft list of the competent supervisory authority of Spain regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[306] · Opinion of the Board · 12 March 2019

Reviews the draft national list from the supervisory authority of Spain of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 7/2019 on the draft list of the competent supervisory authority of Iceland regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[307] · Opinion of the Board · 12 March 2019

Reviews the draft national list from the supervisory authority of Iceland of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 4/2019 on the draft AA between EEA and non-EEA Financial Supervisory Authorities

[308] · Opinion of the Board · 12 February 2019

Opinion on a draft administrative arrangement for transfers between public bodies under Article 46(3)(b): what the arrangement must contain to give enforceable rights and effective remedies. Public bodies only.

Opinion 01/2019 on the draft list of the competent supervisory authority of the Principality of Liechtenstein regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[309] · Opinion of the Board · 23 January 2019

Reviews the draft national list from the supervisory authority of Principality of Liechtenstein of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 2/2019 on the draft list of the competent supervisory authority of Norway regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[310] · Opinion of the Board · 23 January 2019

Reviews the draft national list from the supervisory authority of Norway of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Draft administrative arrangement following EDPB opinion 04/2019 for the transfer of personal data between each of the European Economic Area ("EEA") Authorities set out in Appendix A and each of the non-EEA Authorities set out in Appendix B

[311] · Opinion of the Board · 07 January 2019

Opinion on a draft administrative arrangement for transfers between public bodies under Article 46(3)(b): what the arrangement must contain to give enforceable rights and effective remedies. Public bodies only.

Opinion 24/2018 on the draft list of the competent supervisory authority of Denmark regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[312] · Opinion of the Board · 04 December 2018

Reviews the draft national list from the supervisory authority of Denmark of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 25/2018 on the draft list of the competent supervisory authority of Croatia regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[313] · Opinion of the Board · 04 December 2018

Reviews the draft national list from the supervisory authority of Croatia of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 26/2018 on the draft list of the competent supervisory authority of Luxembourg regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[314] · Opinion of the Board · 04 December 2018

Reviews the draft national list from the supervisory authority of Luxembourg of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 27/2018 on the draft list of the competent supervisory authority of Slovenia regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[315] · Opinion of the Board · 04 December 2018

Reviews the draft national list from the supervisory authority of Slovenia of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 1/2018 on the draft list of the competent supervisory authority of Austria regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[316] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Austria of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 10/2018 on the draft list of the competent supervisory authority of Hungary regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[317] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Hungary of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 11/2018 on the draft list of the competent supervisory authority of Ireland regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[318] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Ireland of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 12/2018 on the draft list of the competent supervisory authority of Italy regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[319] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Italy of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 13/2018 on the draft list of the competent supervisory authority of Lithuania regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[320] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Lithuania of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 14/2018 on the draft list of the competent supervisory authority of Latvia regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[321] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Latvia of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 15/2018 on the draft list of the competent supervisory authority of Malta regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[322] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Malta of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 16/2018 on the draft list of the competent supervisory authority of the Netherlands regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[323] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Netherlands of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 17/2018 on the draft list of the competent supervisory authority of Poland regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[324] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Poland of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 18/2018 on the draft list of the competent supervisory authority of Portugal regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[325] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Portugal of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 19/2018 on the draft list of the competent supervisory authority of Romania regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[326] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Romania of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 2/2018 on the draft list of the competent supervisory authority of Belgium regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[327] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Belgium of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 20/2018 on the draft list of the competent supervisory authority of Sweden regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[328] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Sweden of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 21/2018 on the draft list of the competent supervisory authority of Slovakia regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[329] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Slovakia of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 22/2018 on the draft list of the competent supervisory authority of the United Kingdom regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[330] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of United Kingdom of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 3/2018 on the draft list of the competent supervisory authority of Bulgaria regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[331] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Bulgaria of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 4/2018 on the draft list of the competent supervisory authority of Czech Republic regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[332] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Czech Republic of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 5/2018 on the draft list of the competent supervisory authorities of Germany regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[333] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Germany of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 6/2018 on the draft list of the competent supervisory authority of Estonia regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[334] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Estonia of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 7/2018 on the draft list of the competent supervisory authority of Greece regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[335] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Greece of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 8/2018 on the draft list of the competent supervisory authority of Finland regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[336] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of Finland of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Opinion 9/2018 on the draft list of the competent supervisory authority of France regarding the processing operations subject to the requirement of a data protection impact assessment (Article 35.4 GDPR)

[337] · Opinion of the Board · 03 October 2018

Reviews the draft national list from the supervisory authority of France of processing operations requiring a DPIA under Article 35(4), asking for alignment with the nine WP248 criteria so national lists stay consistent. Check the final national list if you operate there.

Binding decisions (Article 65)

12 documents, 7 with a written takeaway. Newest first.

Binding Decision 1/2026 on the dispute submitted by the Belgian SA on Vlaamse Radio-en Televisieomroeporganisatie (VRT) (Art. 65 GDPR)

[338] · EDPB Binding Decisions · 28 May 2026

Article 65 decision on whether a complaint against the Flemish broadcaster VRT should be dismissed as an abuse of the right to complain and to mandate a not-for-profit body. Procedural: it settles when authorities may reject complaints, not any substantive processing question.

Urgent Binding Decision 01/2023 requested by the Norwegian SA for the ordering of final measures regarding Meta Platforms Ireland Ltd (Art. 66(2) GDPR)

[339] · EDPB Binding Decisions · 27 October 2023 [READ FROM THE DOCUMENT](#) [LAWFUL BASIS](#) [MARKETING](#) [ENFORCEMENT](#)

Meta Platforms Ireland infringed Article 6(1) GDPR by continuing to process personal data for behavioural advertising on Facebook and Instagram under Article 6(1)(b) after the Irish SA's decisions of 31 December 2022, and by switching to Article 6(1)(f) on 5 April 2023 without a valid legal basis. The EDPB instructed the Irish SA to order Meta to cease that processing across the EEA, extending the Norwegian SA's provisional ban of 14 July 2023. For any controller, neither contract nor legitimate interest carries behavioural advertising built on observed behaviour, location and ad interactions; consent is the basis to design for.

Binding Decision 2/2023 on the dispute submitted by the Irish SA regarding TikTok Technology Limited (Art. 65 GDPR)

[340] · EDPB Binding Decisions · 02 August 2023 [READ FROM THE DOCUMENT](#) [CHILDREN](#) [DPIA](#) [ENFORCEMENT](#)

TikTok's public-by-default settings for users aged 13 to 17 between 31 July and 31 December 2020 infringed Articles 25(1), 25(2), 5(1)(c), 24(1), 13(1)(e) and 12(1) GDPR, and the EDPB additionally instructed the Irish SA to find an infringement of the fairness principle in Article 5(1)(a) because the registration and video-posting pop-ups nudged children towards public accounts. The decision binds the Irish SA and the objecting authorities and is the EDPB's clearest statement that deceptive interface design is unfair processing. Audit defaults and consent flows for child users, and expect fairness, not only transparency, to be assessed.

Binding Decision 1/2023 on the dispute submitted by the Irish SA on data transfers by Meta Platforms Ireland Limited for its Facebook service (Art. 65 GDPR)

[341] · EDPB Binding Decisions · 13 April 2023 [READ FROM THE DOCUMENT](#) [TRANSFERS](#) [ENFORCEMENT](#)

Meta Platforms Ireland infringed Article 46(1) GDPR by transferring EU/EEA Facebook user data to the United States on standard contractual clauses that could not compensate for the deficiencies in US law identified by the CJEU. The EDPB instructed the Irish SA to add an administrative fine to the proposed suspension order and to order Meta to bring processing into compliance, including ceasing unlawful processing of the transferred data, in an inquiry opened on 28 August 2020. The decision binds the Irish SA and shows that a transfer impact assessment concluding that supplementary measures are ineffective must lead to suspension, not continued transfer.

Binding Decision 3/2022 on the dispute submitted by the Irish SA on Meta Platforms Ireland Limited and its Facebook service (Art. 65 GDPR)

[342] · EDPB Binding Decisions · 05 December 2022 [READ FROM THE DOCUMENT](#) [LAWFUL BASIS](#) [MARKETING](#) [ENFORCEMENT](#)

Meta Platforms Ireland cannot rely on Article 6(1)(b) GDPR for behavioural advertising on Facebook, because such advertising is objectively not necessary for the performance of the contract and users cannot be taken to expect it from a brief mention in the terms. The EDPB also confirmed infringements of Articles 12 and 13 for unclear information on processing operations and legal bases, found the accept-or-leave choice unfair under Article 5(1)(a), instructed the Irish SA to impose a fine and required compliance within three months of the final decision. Adopted on 5 December 2022, the decision sets the position later enforced EEA-wide in Urgent Binding Decision 01/2023.

Binding Decision 4/2022 on the dispute submitted by the Irish SA on Meta Platforms Ireland Limited and its Instagram service (Art. 65 GDPR)

[343] · EDPB Binding Decisions · 05 December 2022 [READ FROM THE DOCUMENT](#) [LAWFUL BASIS](#) [MARKETING](#) [ENFORCEMENT](#)

Meta Platforms Ireland cannot rely on Article 6(1)(b) GDPR for behavioural advertising on Instagram: the processing is not a core part of the contract, is objectively unnecessary for its performance and falls outside users' reasonable expectations under the Terms of Use. The EDPB upheld infringements of Articles 5(1)(a), 12(1) and 13(1)(c) for failing to give meaningful information on processing operations and legal bases, found the binary accept-or-delete choice unfair, instructed the Irish SA to impose a fine and set a three-month compliance deadline. Adopted on 5 December 2022, it mirrors Binding Decision 3/2022 on Facebook, and both were extended EEA-wide by Urgent Binding Decision 01/2023.

Binding Decision 5/2022 on the dispute submitted by the Irish SA regarding WhatsApp Ireland Limited (Art. 65 GDPR)

[344] · EDPB Binding Decisions · 05 December 2022 [READ FROM THE DOCUMENT](#) [LAWFUL BASIS](#) [TRANSPARENCY](#) [ENFORCEMENT](#)

WhatsApp Ireland cannot rely on Article 6(1)(b) GDPR to process personal data for service improvement and security features, because processing must be objectively necessary and integral to the contracted service, judged from both the controller's and a reasonable user's perspective, and a controller cannot pick a basis that serves its commercial interests at the expense of data subject protection. The EDPB instructed the Irish SA to record the Article 6(1) infringement, to increase the administrative fine beyond its draft, and to order the privacy policy into compliance with Articles 12(1) and 13(1)(c). Any controller citing contract for improvement or analytics processing should re-evaluate that basis.

Binding Decision 2/2022 on the dispute arisen on the draft decision of the Irish Supervisory Authority regarding Meta Platforms Ireland Limited (Instagram) under Article 65(1)(a) GDPR

[345] · EDPB Binding Decisions · 28 July 2022

Article 65 decision in the Irish authority's Meta (Instagram) inquiry into children's data: contact details of child users with business accounts were published by default and children's accounts were public by default, breaching Articles 5(1)(c), 6(1), 12(1), 24, 25 and 35 among others; the Board directed a higher fine (EUR 405 million in the final decision). Enforcement history; the substantive points on default settings and children are in the Article 25 guidance and Guidelines 05/2020.

Decision 01/2022 on the dispute arisen on the draft decision of the French Supervisory Authority regarding Accor SA under Article 65(1)(a) GDPR

[346] · EDPB Binding Decisions · 15 June 2022

Article 65 decision on the French authority's Accor case, adjusting the fine for direct marketing without valid consent and access request failures. Enforcement history.

Binding decision 1/2021 on the dispute arisen on the draft decision of the Irish Supervisory Authority regarding WhatsApp Ireland under Article 65(1)(a) GDPR

[347] · EDPB Binding Decisions · 28 July 2021 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [TRANSPARENCY](#) [ENFORCEMENT](#)

WhatsApp Ireland's privacy notices infringed the transparency duties in Articles 12 to 14 GDPR, and the EDPB, resolving objections from several supervisory authorities, instructed the Irish Data Protection Commission to add an infringement of Article 13(1)(d) because legitimate interests were not tied to specific processing operations, to treat the output of the lossy hashing of non-users' phone numbers as pseudonymised personal data within Article 14, and to reassess the fine upwards from the 30–50 million euro range in its draft. The decision binds the Irish authority and WhatsApp Ireland. Read it as the benchmark for how granular a legitimate-interests description and a non-user notice must be.

Urgent Binding Decision 01/2021 on the request under Article 66(2) GDPR from the Hamburg (German) Supervisory Authority for ordering the adoption of final measures regarding Facebook Ireland Limited

[348] · EDPB Binding Decisions · 12 July 2021

Urgent binding decision refusing the Hamburg authority's request for final measures against Facebook over WhatsApp data sharing, while asking the Irish authority to investigate. Procedural precedent on Article 66 urgency.

Decision 01/2020 on the dispute arisen on the draft decision of the Irish Supervisory Authority regarding Twitter International Company under Article 65(1)(a) GDPR

[349] · EDPB Binding Decisions · 09 November 2020

The Board's first Article 65 decision, on the Irish authority's Twitter breach notification case, directing a higher fine. Enforcement history; the substantive point on the 72-hour clock is in Guidelines 9/2022.

Legislative opinions

20 documents, 7 with a written takeaway. Newest first.

EDPB-EDPS Joint Opinion 4/2026 on the Proposal for a Cybersecurity Act 2 and the Proposal on amendments to the NIS 2 Directive

[350] · Legislative opinion · 19 March 2026 [READ FROM THE DOCUMENT](#) [SECURITY](#) [BREACH](#)

The EDPB and EDPS back a single entry point for notifying personal data breaches alongside NIS 2 incident reports, support classifying European Digital Identity and Business Wallet providers as essential entities, and welcome supply chain measures aimed at non-technical risks. They ask legislators to spell out any large-scale personal data processing by ENISA in the basic act, to require EDPB consultation before certification schemes on security of processing are adopted, to keep certification controls configurable so they respect data minimisation, and to define safeguards for mandatory ransomware payment reporting. NIS 2 operators should plan for combined incident and breach reporting.

EDPB-EDPS Joint Opinion 3/2026 on the Proposal for a European Biotech Act

[351] · Legislative opinion · 12 March 2026

Joint EDPB-EDPS opinion on the proposed European Biotech Act, on the handling of genetic and health data in research and regulatory pathways. Sector legislation.

EDPB-EDPS Joint opinion 2/2026 on the Proposal for a Regulation as regards the simplification of the digital legislative framework (Digital Omnibus)

[352] · Legislative opinion · 11 February 2026 [READ FROM THE DOCUMENT](#) [BREACH](#) [AI](#) [COOKIES TRACKING](#)

The EDPB and EDPS reject the narrowed definition of personal data in Article 4(1) and the new Article 41a on pseudonymisation, insist Article 22 stays a prohibition in principle on solely automated decisions, and accept legitimate interest for AI only with a mandatory three-step test, an unconditional right to object and enhanced transparency. They support raising the breach notification threshold to breaches likely to result in high risk, extending the deadline from 72 to 96 hours, the six-month bar on repeat consent requests and machine-readable consent signals, but warn that splitting the terminal equipment rules between the GDPR (personal data) and the ePrivacy Directive (other data) creates legal uncertainty and must not lower protection, and want the EDPB rather than the Commission to own DPIA lists and breach templates. Current GDPR obligations stand while negotiation continues.

EDPB-EDPS Joint opinion 1/2026 on the Proposal for a Regulation as regards the simplification of the implementation of harmonised rules on artificial intelligence (Digital Omnibus on AI)

[353] · Legislative opinion · 21 January 2026 [READ FROM THE DOCUMENT](#) [AI](#) [GOVERNANCE](#)

The EDPB and EDPS accept that postponing high-risk AI obligations from 2 August 2026 to 2 December 2027 (Annex III) and from 2 August 2027 to 2 August 2028 (Annex I) has partly objective causes but ask legislators to keep the current dates for transparency duties, retain AI literacy obligations for providers and deployers, and keep registration of Annex III systems that providers self-exempt. They support bias detection with special category data in all AI systems only under strict necessity, with data protection authorities kept as primary supervisors, involved in EU-level sandboxes and unhindered by market surveillance single points of contact. Providers should not treat the delay as settled.

EDPB-EDPS Joint Opinion 01/2025 on the Proposal for a Regulation on simplification measures for SMEs and SMCs, in particular the record-keeping obligation under Art. 30(5) GDPR

[354] · Legislative opinion · 09 July 2025 [READ FROM THE DOCUMENT](#) [GOVERNANCE](#) [CONTROLLER PROCESSOR](#)

The Commission's proposal of 21 May 2025 would raise the Article 30(5) record-keeping exemption from fewer than 250 employees to fewer than 750, drop the trigger for special category and criminal data, and keep records only for processing likely to result in high risk, covering an estimated 38,000 SMCs. The EDPB and EDPS accept the aim, note the missing fundamental rights assessment and ask for recitals confirming that records are needed only for the high-risk activities themselves, that Article 9(2)(b) employment processing is in principle not high risk, that the threshold follows the formal SME and SMC definitions, and that public authorities stay excluded. Until adoption, the 250-employee rule applies.

EDPB-EDPS Joint Opinion 02/2023 on the Proposal for a Regulation of the European Parliament and of the Council on the establishment of the digital euro

[355] · Legislative opinion · 17 October 2023

Joint opinion on the proposed Regulation establishing the digital euro: the EDPB and EDPS ask for a high privacy threshold, an offline mode with cash-like privacy, no central transaction database beyond what settlement needs, and clear roles for the ECB and the payment service providers. Payments sector.

EDPB-EDPS Joint Opinion 01/2023 on the Proposal for a Regulation of the European Parliament and of the Council laying down additional procedural rules relating to the enforcement of Regulation (EU) 2016/679

[356] · Legislative opinion · 19 September 2023

Joint opinion on the proposed Regulation laying down additional procedural rules for cross-border GDPR enforcement, supporting the aim and asking for clearer time limits and parties' rights.

EDPB-EDPS Joint Opinion 04/2022 on the Proposal for a Regulation of the European Parliament and of the Council laying down rules to prevent and combat child sexual abuse

[357] · Legislative opinion · 28 July 2022

Joint opinion on the proposed Regulation on rules to prevent and combat child sexual abuse, finding the detection orders disproportionate. Legislative position.

EDPB-EDPS Joint Opinion 03/2022 on the Proposal for a Regulation on the European Health Data Space

[358] · Legislative opinion · 12 July 2022

Joint opinion on the proposed European Health Data Space Regulation, on secondary use of health data and patients' opt-out. Health sector.

EDPB-EDPS Joint Opinion 2/2022 on the Proposal of the European Parliament and of the Council on harmonised rules on fair access to and use of data (Data Act)

[359] · Legislative opinion · 04 May 2022

Joint opinion on the proposed Data Act, on the interplay between data access rights for connected products and the GDPR. Now adopted; the point that personal data in product data keeps its GDPR footing stands.

EDPB-EDPS Joint Opinion 1/2022 on the extension of the Covid-19 certificate Regulation

[360] · Legislative opinion · 14 March 2022

Joint opinion on extending the Covid-19 certificate Regulation. Historical.

EDPB-EDPS Joint Opinion 5/2021 on the proposal for a Regulation of the European Parliament and of the Council laying down harmonised rules on artificial intelligence (Artificial Intelligence Act)

[361] · Legislative opinion · 18 June 2021 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [AI](#) [BIOMETRICS](#)

The EDPB and EDPS welcome the risk-based approach of the AI Act proposal but call for a general ban on any use of AI for automated recognition of human features in publicly accessible spaces, a ban on social scoring by private as well as public actors, and a prohibition on inferring emotions except in narrowly regulated cases. They ask that GDPR compliance be a precondition for placing systems on the market and that data protection authorities be the national supervisory authorities. Addressed to the co-legislators in June 2021, it is a historical position; read it alongside the adopted AI Act to see which asks were taken up.

Opinion 20/2021 on Tobacco Traceability System

[362] · Legislative opinion · 18 June 2021

Opinion on the EU tobacco traceability system's processing of personal data. Sector legislation.

EDPB-EDPS Joint Opinion 04/2021 on the Proposal for a Regulation of the European Parliament and of the Council on a framework for the issuance, verification and acceptance of interoperable certificates on vaccination, testing and recovery

[363] · Legislative opinion · 31 March 2021

Joint opinion on the proposed Regulation for interoperable COVID-19 vaccination, test and recovery certificates (the Digital Green Certificate): no central EU database, purpose limited to free movement, and a sunset once the pandemic ends. Historical.

EDPB-EDPS Joint Opinion 03/2021 on the Proposal for a regulation of the European Parliament and of the Council on European data governance (Data Governance Act)

[364] · Legislative opinion · 11 March 2021

Joint opinion on the proposed Data Governance Act. Now adopted.

EDPB-EDPS Joint Opinion 1/2021 on standard contractual clauses between controllers and processors

[365] · Legislative opinion · 14 January 2021 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [CONTROLLER PROCESSOR](#)

The Commission's draft standard contractual clauses for Article 28 contracts are welcomed as a strong accountability tool, subject to amendments: the scope must state clearly whether the clauses apply to processors outside the EU and how they interact with Chapter V transfer clauses, the docking clause needs a procedure for new parties, the controller and not the processor must choose the auditor, cost allocation should be deleted, and the annexes must set out each party's responsibilities with absolute clarity. Addressed to the Commission in January 2021 before it adopted the clauses. When drafting a processing agreement on the Commission's clauses, give these points the most care.

EDPB-EDPS Joint Opinion 2/2021 on standard contractual clauses for the transfer of personal data to third countries

[366] · Legislative opinion · 14 January 2021 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [TRANSFERS](#)

The draft Article 46 SCCs reinforce protection for data subjects through four modules, a docking clause and clauses on third-country law and government access requests, but the EDPB and EDPS require changes: the assessment of third-country law must rest on objective factors rather than the likelihood of access or the absence of past requests, notification of access requests must precede any response, the processor-to-processor module needs the full Article 28 obligations, and importers already subject to the GDPR under Article 3(2) should be excluded. The SCCs must be used with Recommendations 01/2020 on supplementary measures. Addressed to the Commission in January 2021; the transfer impact assessment stays with the exporter.

EDPB-EDPS Joint Opinion 1/2019 on the processing of patients' data and the role of the European Commission within the eHealth Digital Service Infrastructure (eHDSI)

[367] • Legislative opinion • 12 July 2019

Joint opinion on patients' data and the Commission's role in the eHealth Digital Service Infrastructure. Health sector.

Opinion 3/2019 concerning the Questions and Answers on the interplay between the Clinical Trials Regulation (CTR) and the General Data Protection regulation (GDPR)

[368] • Legislative opinion • 23 January 2019

Opinion on the Commission's questions and answers on the interplay between the Clinical Trials Regulation and the GDPR: consent to participate in a trial is not the GDPR lawful basis. Clinical research sector.

Opinion 23/2018 on Commission proposals on European Production and Preservation Orders for electronic evidence in criminal matters (Art. 70.1.b)

[369] • Legislative opinion • 26 September 2018

Opinion on the proposed e-evidence Regulation on cross-border production and preservation orders for electronic evidence. Law enforcement.

Task force reports

3 documents, 3 with a written takeaway. Newest first.

Report of the work undertaken by the ChatGPT Taskforce

[370] · Task force report · 24 May 2024 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [AI](#) [LAWFUL BASIS](#) [ENFORCEMENT](#)

The taskforce, set up on 13 April 2023 to coordinate national investigations into OpenAI while it had no EU establishment, records preliminary common views: web scraping for training, pre-processing, training, prompts and outputs each need a lawful basis, with OpenAI relying on legitimate interests; terms of service cannot shift GDPR responsibility to users; transparency, accuracy of probabilistic output and data subject rights must be handled by design, and technical complexity does not excuse non-compliance. OpenAI established an EU presence on 15 February 2024, bringing future cross-border processing under the one-stop-shop. Read it as the authorities' checklist for any generative AI service; the views were preliminary as of 23 May 2024.

Report of the work undertaken by the supervisory authorities within the 101 Taskforce

[371] · Task force report · 19 April 2023 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [TRANSFERS](#) [COOKIES TRACKING](#) [CONTROLLER PROCESSOR](#)

Supervisory authorities handling the 101 complaints filed on 17 August 2020 about Google Analytics and Facebook Business Tools agreed that transfers relying on the invalidated Privacy Shield after 16 July 2020 breached Chapter V, that standard contractual clauses need supplementary measures addressing the deficiencies the CJEU identified, that encryption fails where the importer holds the keys, that anonymisation after transfer is too late, and that a website operator choosing such a tool is a controller. By March 2023 eight authorities had issued decisions. Since 10 July 2023 the EU-US adequacy decision covers transfers to DPF-certified recipients, so the report now matters mainly for non-certified importers and for the controller analysis.

Report of the work undertaken by the Cookie Banner Taskforce

[372] · Task force report · 18 January 2023 [READ FROM THE DOCUMENT](#) [COOKIES TRACKING](#) [CONSENT](#)

Supervisory authorities agreed a minimum common position on cookie banners: no reject option where consent is given means no valid consent, pre-ticked boxes are invalid, a reject option hidden as a low-prominence text link is not equivalent to the accept button, deceptive colours and contrast are assessed case by case with unreadable text manifestly non-compliant, cookies claimed as essential must be shown to be so, and withdrawal must be as easy as consent without mandating a specific icon. Where Article 5(3) ePrivacy is breached, subsequent GDPR processing cannot be compliant. The positions apply on top of national ePrivacy law; test each banner against them before relying on the consent.

Coordinated enforcement

5 documents, 3 with a written takeaway. Newest first.

Coordinated Enforcement Action, implementation of the right to erasure by controllers

[373] · Coordinated Enforcement Framework · 18 February 2026 [READ FROM THE DOCUMENT](#) [RIGHTS](#) [ENFORCEMENT](#)

Across 32 supervisory authorities and 764 controllers surveyed, erasure compliance is mostly rated average and fails in seven recurring ways: missing internal procedures (flagged by 17 authorities), untrained staff, thin privacy notice information (13 authorities), blanket use of Article 17(3) exceptions without documented case-by-case assessment, retention periods set at the longest possible for everything, no method for erasure in back-ups, and anonymisation used as a substitute for deletion. Nine authorities opened or continued formal investigations. Controllers should adopt a written erasure procedure with owners and deadlines, a data deletion matrix cross-referencing data types and retention periods, a back-up erasure method, and documented reasoning for every refusal.

Coordinated Enforcement Action, implementation of the right of access by controllers

[374] · Coordinated Enforcement Framework · 20 January 2025 [READ FROM THE DOCUMENT](#) [RIGHTS](#) [ENFORCEMENT](#)

Thirty supervisory authorities examined how 1,185 controllers, from SMEs to large companies and public bodies, implement the right of access; two-thirds of participating authorities rated compliance as average to high, and larger organisations and those receiving more requests performed better. The report identifies recurring shortcomings: no documented internal procedure, inconsistent or excessive reading of the limitations, automatic reliance on exceptions, excessive formal requirements and identity checks, and limited awareness of Guidelines 01/2022. It closes with non-binding recommendations for controllers and authorities. Benchmark the access procedure against the challenges it lists and align it with Guidelines 01/2022.

Coordinated Enforcement Action, Designation and Position of Data Protection Officers

[375] · Coordinated Enforcement Framework · 17 January 2024 [READ FROM THE DOCUMENT](#) [GOVERNANCE](#)

The second coordinated enforcement action, run by 25 supervisory authorities across the EEA in 2023 with over 17,000 replies, finds that most DPOs report the skills, training, clearly defined tasks and independence that Articles 37 to 39 require, but identifies organisations that fail to designate a DPO where mandatory, under-resource the role, assign tasks not aligned with the GDPR or compromise independence through reporting lines. The report addresses supervisory authorities, controllers and processors, and signals awareness-raising and enforcement on these points. Check DPO designation, resourcing, reporting line and task list against the findings, and give the DPO time and budget to keep knowledge current.

Coordinated Enforcement Action, use of cloud-based services by the public sector

[376] · Coordinated Enforcement Framework · 18 January 2023

Coordinated enforcement action on public bodies' use of cloud services: findings on DPIAs, contracts, transfers and the difficulty of negotiating with large providers. Public sector.

EDPB Document on Coordinated Enforcement Framework under Regulation 2016/679

[377] · Coordinated Enforcement Framework · 20 October 2020

Founding document of the Coordinated Enforcement Framework: how authorities pick and run an annual joint action. Institutional.

Other guidance

21 documents, 10 with a written takeaway. Newest first.

Template for Cross-Regulatory Cooperation Agreements

[378] · Other guidance · 07 July 2026

A model agreement for cooperation between data protection authorities and other regulators (competition, consumer, digital services). For authorities, not controllers.

EU-U.S. Data Privacy Framework F.A.Q. for European businesses - version 2.0

[379] · Other guidance · 23 January 2026 [READ FROM THE DOCUMENT](#) [TRANSFERS](#) [CONTROLLER PROCESSOR](#)

Personal data may flow from the EEA to a US company without further safeguards only while that company holds an active certification on the Data Privacy Framework List kept by the US Department of Commerce, and only companies under FTC or Department of Transportation jurisdiction can self-certify. Exporters must check the list before each transfer, fall back on standard contractual clauses or binding corporate rules if certification lapses, confirm HR Data coverage and cooperation with EU authorities before sending employee data, and still sign an Article 28 agreement with any certified processor. Version 2.0, adopted 15 January 2026, replaces version 1.0 of July 2024.

EU-US Data Privacy Framework FAQ for European individuals - version 2.0

[380] · Other guidance · 23 January 2026 [READ FROM THE DOCUMENT](#) [TRANSFERS](#) [RIGHTS](#)

Individuals whose data is transferred to a DPF-certified US company keep rights to notice, access, correction and deletion, and can check certification on the DPF List. Complaints go first to the company, which must respond within 45 days, then to any EEA data protection authority using the EDPB template form or to the company's independent recourse mechanism; HR Data complaints and opted-in companies go to the informal panel of EU authorities, other cases can be referred to the FTC, the Department of Commerce or the OACP. Controllers should mirror these routes in privacy notices. Version 2.0 replaces the July 2024 version.

EU-US Data Privacy Framework Template Complaint Form for Submitting Complaints to EU DPAs related to the Data Privacy Framework Principles - version 2.0

[381] · Other guidance · 22 January 2026

Template form for an EU resident to complain to a national authority about a US company certified under the Data Privacy Framework. Useful to individuals; controllers need only know it exists.

EU-US Data Privacy Framework FAQ for European businesses

[382] · Other guidance · 16 July 2024 [READ FROM THE DOCUMENT](#) [SUPERSEDED](#) [TRANSFERS](#)

Answers for businesses in the EU on the EU-US Data Privacy Framework: how transfers to certified US organisations work under the adequacy decision, what a European exporter must check before relying on it, and how the framework relates to other transfer tools. It is informational guidance for controllers and processors exporting data to the United States rather than a binding position, and it sits alongside the EDPB information note on transfers to the United States and the redress mechanism documents. This 16 July 2024 version has been superseded by the EU-U.S. Data Privacy Framework FAQ for European businesses, version 2.0.

EU-US Data Privacy Framework FAQ for European individuals

[383] · Other guidance · 16 July 2024 [READ FROM THE DOCUMENT](#) [SUPERSEDED](#) [TRANSFERS](#) [RIGHTS](#)

Answers for individuals in the EU on the EU-US Data Privacy Framework: how transfers to the United States work under the adequacy decision of 10 July 2023, what rights individuals have and how to seek redress. It is informational guidance for individuals rather than a binding position, and it is useful to controllers drafting privacy notices or complaint responses for transfers to certified US organisations. This 16 July 2024 version has been superseded by the EU-U.S. Data Privacy Framework FAQ for European individuals, version 2.0.

Information Note on the Data Privacy Framework redress mechanism for national security purposes

[384] · Other guidance · 24 April 2024 [READ FROM THE DOCUMENT](#) [TRANSFERS](#) [RIGHTS](#)

Individuals in the EU and EEA who believe their personal data transferred to the United States was unlawfully collected or processed by US national security authorities can complain through the Data Privacy Framework redress mechanism, starting with the US Office of the Director of National Intelligence's Civil Liberties Protection Officer. Complaints use the EDPB template complaint form for the CLPO, and the note sits alongside rules of procedure for the mechanism and for the informal panel of EU data protection authorities that handles them. Controllers relying on the DPF should reference the mechanism in their transfer documentation and privacy notices.

Information note on data transfers under the GDPR to the United States after the adoption of the adequacy decision on 10 July 2023

[385] · Other guidance · 18 July 2023 [READ FROM THE DOCUMENT](#) [TRANSFERS](#)

From 10 July 2023 transfers to US organisations on the Data Privacy Framework List may rely on the adequacy decision without Article 46 tools or supplementary measures, while transfers to non-certified US recipients still need standard contractual clauses, binding corporate rules or another Article 46 safeguard. The note addresses controllers and processors exporting data and explains that individuals may complain to their national authority about US intelligence access without proving their data was collected. Check each US recipient against the DPF List, take the Commission's assessment into account in transfer impact assessments for non-certified recipients, and note the review cycle of one year then at least every four years.

Template Complaint form and Template Acknowledgement of receipt

[386] · Other guidance · 20 June 2023

Template complaint form and template acknowledgement of receipt for use by supervisory authorities, to harmonise how complaints are lodged across the EEA.

Toolbox on essential data protection safeguards for enforcement cooperation between EEA data protection authorities and competent data protection authorities of third countries

[387] · Other guidance · 14 March 2022

Toolbox of essential data protection safeguards for enforcement cooperation between EEA data protection authorities and the data protection authorities of third countries: what an agreement or arrangement must contain before personal data is shared in an investigation. For authorities.

One-Stop-Shop Leaflet

[388] · Other guidance · 29 June 2021

Leaflet explaining the one-stop-shop mechanism to the public.

EDPB Document on response to the request from the European Commission for clarifications on the consistent application of the GDPR, focusing on health research

[389] · Other guidance · 02 February 2021

Response to the Commission's request for clarification on the consistent application of the GDPR to health research. Research sector.

Information note on data transfers under the GDPR to the United Kingdom after the transition period - update 13/01/2021

[390] · Other guidance · 13 January 2021 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [TRANSFERS](#)

From 1 January 2021 the UK is a third country, but under the EU-UK Trade and Cooperation Agreement transfers to UK entities are not treated as third-country transfers for an interim period ending no later than 30 June 2021, provided the UK data protection regime stays in place. Exporters should use the period to put Article 46 tools in place (standard contractual clauses, binding corporate rules, codes of conduct), consider supplementary measures, and update records and privacy notices; groups with the ICO as BCR lead authority need a new EEA lead. Addressed to GDPR controllers and processors; historical now that the interim period has ended and UK adequacy applies.

Information note on data transfers under the GDPR to the United Kingdom after the transition period

[391] · Other guidance · 15 December 2020 [READ FROM THE DOCUMENT](#) [SUPERSEDED](#) [TRANSFERS](#)

With the transition period ending on 31 December 2020 and no adequacy decision in place, transfers of personal data to the UK fall under Chapter V GDPR from 1 January 2021: exporters need standard contractual clauses, binding corporate rules or another Article 46 safeguard, plus supplementary measures where Recommendations 01/2020 require them, and Article 49 derogations are exceptional and read restrictively. Controllers and processors must update records of processing and privacy notices, and groups with the ICO as BCR lead authority must appoint a new EEA lead. Superseded on 13 January 2021 by the updated information note reflecting the interim provision of the EU-UK Trade and Cooperation Agreement.

Article 65 FAQ

[392] · Other guidance · 10 November 2020

Frequently asked questions on the Article 65 dispute resolution procedure. Procedure between authorities.

Frequently Asked Questions on the judgment of the Court of Justice of the European Union in Case C-311/18 - Data Protection Commissioner v Facebook Ireland Ltd and Maximillian Schrems

[393] · Other guidance · 24 July 2020 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [TRANSFERS](#)

The judgment of 16 July 2020 invalidates the Privacy Shield with immediate effect and no grace period, while standard contractual clauses and binding corporate rules remain valid only where the exporter and importer have assessed, case by case, that the law of the destination country allows an essentially equivalent level of protection, adding supplementary measures where it does not. Article 49 derogations are available but cannot become the rule, and a controller that cannot suspend a transfer lacking safeguards must notify its supervisory authority. Addressed to controllers and processors exporting data. The guidance on supplementary measures it promised became Recommendations 01/2020, which now carries the operational detail.

Information note on BCRs for Groups of undertakings / enterprises which have ICO as BCR Lead SA

[394] · Other guidance · 22 July 2020

Information note for groups whose binding corporate rules had the UK ICO as lead authority: how to move the lead to an EEA authority after Brexit. Historical.

EDPB Leaflet

[395] · Other guidance · 28 March 2019

General leaflet introducing the Board.

Information note on BCRs for companies which have ICO as BCR Lead Supervisory Authority

[396] · Other guidance · 12 February 2019

Information note for companies whose binding corporate rules had the UK ICO as lead authority. Historical, superseded by the 2020 note.

Information note on data transfers under the GDPR in the event of a no-deal Brexit

[397] · Other guidance · 12 February 2019

Information note on transfers to the UK in the event of a no-deal Brexit. Historical.

Position Paper on the derogations from the obligation to maintain records of processing activities pursuant to Article 30(5) GDPR

[398] · Other guidance · 19 April 2018 [READ FROM THE DOCUMENT](#) [GOVERNANCE](#)

Article 30(5) GDPR exempts organisations with fewer than 250 employees from keeping records of processing activities, but the exemption falls away if the processing is likely to result in a risk to data subjects, is not occasional, or includes special category or criminal conviction data. The WP29 reads these three conditions as alternatives: any one of them alone triggers the record-keeping duty. The duty covers only the processing that meets a condition, so a small organisation that regularly processes employee data must record that processing while occasional, low-risk activities stay outside. Small organisations should treat core processing as non-occasional and keep a record rather than rely on headcount.

Support Pool of Experts reports

22 documents, 13 with a written takeaway. Newest first.

One-Stop-Shop case digest on right to object and right to erasure

[399] · Support Pool of Experts · 26 May 2026 [READ FROM THE DOCUMENT](#) [RIGHTS](#) [ENFORCEMENT](#)

Supervisory authorities handling Article 17 and Article 21 complaints through the one-stop-shop look first at whether the controller made the right easy to exercise: 631 final decisions from 2018 to January 2026 (551 on erasure, 80 on objection) show the recurring failures are poor information on the right to object, cumbersome identity checks, internal delays, weak coordination with processors and handling errors. Most cases ended in reprimands, compliance or erasure orders or amicable settlement, with fines rare. Use the catalogue to test your own objection and erasure workflow, including marketing opt-outs and account deletion. An external SPE expert wrote it; the May 2026 update replaces the 2022 version.

Report on the use of SPE external experts in 2025

[400] · Support Pool of Experts · 24 April 2026

Administrative report on how the Board's external expert pool was used during 2025.

One-Stop-Shop case digest on the legal basis of "legitimate interest"

[401] · Support Pool of Experts · 26 March 2026 [READ FROM THE DOCUMENT](#) [LAWFUL BASIS](#) [ENFORCEMENT](#)

Supervisory authorities applying the Article 6(1)(f) three-step test in 67 decisions between December 2018 and June 2025 (62 one-stop-shop decisions and 5 EDPB binding decisions) accepted commercial interests only when stated precisely, rejected most cases at the necessity stage where a less intrusive design existed, and read data subjects' interests and reasonable expectations broadly. The common infringements were no documented assessment before processing began, vague interests such as measuring content performance, excessive retention, and transparency gaps that stopped people objecting. Controllers relying on legitimate interest should write the assessment first, name the interest specifically and disclose it. An external SPE expert wrote the digest, which builds on Guidelines 1/2024.

Data brokers market study

[402] · Support Pool of Experts · 04 March 2026 [READ FROM THE DOCUMENT](#) [MARKETING](#) [TRANSPARENCY](#) [LAWFUL BASIS](#)

Data brokers collect personal data from many public and private sources, aggregate it into profiles and monetise it, usually without meaningful control by the individual, and activity codes do not find them: keyword searches identified over 40 brokers and providers operating in Belgium. The study, commissioned by the Belgian supervisory authority through the SPE programme and written by an external expert, sorts them into eight types, rating personal data brokers, data pools and cleanrooms, AI platforms built on personal data and user-controlled brokers as high risk. Controllers buying enriched or third-party data should check their suppliers' sources and legal basis.

Report on International Data Protection Enforcement Cooperation

[403] · Support Pool of Experts · 02 February 2026

Report on cooperation between data protection enforcement bodies internationally: mechanisms, obstacles and recommendations for authorities.

The Digital Euro and its token-based offline modality

[404] · Support Pool of Experts · 20 October 2025

Expert report on the privacy design of the digital euro's offline, token-based mode. Payments sector.

Fundamentals of Secure AI Systems with Personal Data

[405] · Support Pool of Experts · 05 June 2025 [READ FROM THE DOCUMENT](#) [AI](#) [SECURITY](#)

Security, data science and governance teams running AI systems on personal data get shared vocabulary and lifecycle controls from this five-module open-source training (CC BY-SA 4.0): terminology and the AI lifecycle, GDPR principles and AI Act risk tiers mapped onto AI risks, secure MLOps and secure processing environments, deployment, monitoring and decommissioning, and audit checklists with worked use cases. It maps seven AI risk domains against the ten privacy risks in ISO/IEC 29134:2023. An external SPE expert wrote it, completed December 2024 and updated April 2025, and it carries no official EDPB position. Use it as a curriculum and a source of AI/ML audit questions.

Law & Compliance in AI Security & Data Protection

[406] · Support Pool of Experts · 05 June 2025 [READ FROM THE DOCUMENT](#) [AI](#) [GOVERNANCE](#)

Data protection officers can map GDPR and AI Act obligations onto each stage of an AI system's life with this roughly 15-hour self-study module, commissioned through the SPE programme and completed by an external expert in December 2024, in three parts: fundamental AI and cybersecurity concepts, the lifecycle from inception to discontinuation, and advanced topics including fairness, accountability, transparency, privacy-enhancing technologies and large language models. Three hypothetical case studies (a university, a children's toy start-up and a hospital) show how the two regimes interact. It states the author's views, not the EDPB's. Use it to train a DPO team before an AI risk assessment programme.

AI Privacy Risks & Mitigations Large Language Models (LLMs)

[407] · Support Pool of Experts · 10 April 2025 [READ FROM THE DOCUMENT](#) [AI](#) [DPIA](#)

Large language model systems carry privacy and data protection risks at every stage of their lifecycle, and the report sets out a risk management methodology to identify, assess and mitigate them, worked through three use cases: a customer service virtual assistant, a student progress monitoring system and a travel and schedule management assistant. It was prepared by an external expert under the Support Pool of Experts programme and does not reflect an official EDPB position. Use it as a structured template for an LLM risk assessment or DPIA, and expect supervisory authorities to have read it.

Report on the use of SPE external experts in 2024

[408] · Support Pool of Experts · 18 March 2025

Administrative report on how the Board's external expert pool was used during 2024.

AI: Complex Algorithms and effective Data Protection Supervision

[409] · Support Pool of Experts · 23 January 2025 [READ FROM THE DOCUMENT](#) [AI](#) [RIGHTS](#) [ENFORCEMENT](#)

Two reports produced for the German Federal Data Protection Authority under the Support Pool of Experts programme address how supervisory authorities can evaluate algorithmic bias with available tools and how data subjects' rights can be effectively implemented in AI systems. They are written for supervisory staff, express the external author's views rather than an EDPB position, and indicate what an authority may examine in an AI investigation. Controllers deploying AI systems can use the bias evaluation methods and the rights implementation material to prepare for supervisory scrutiny.

One-Stop-Shop case digest on right of access

[410] · Support Pool of Experts · 16 January 2025 [READ FROM THE DOCUMENT](#) [RIGHTS](#) [ENFORCEMENT](#)

Of 185 final one-stop-shop decisions reviewed, 52 are analysed to show how supervisory authorities apply Article 15 in practice: activity logs tied to unique identifiers are personal data, an impersonating profile is the impersonated person's data, a copy must reflect the data held at the time of the request, identity verification must be proportionate and demanding official documents exceeds necessity where alternatives suffice, and the one month deadline is often missed through unclear procedures. It was prepared by an external expert under the Support Pool of Experts programme and complements Guidelines 01/2022. Use it as a worked-example library when handling contested access requests.

AI Auditing

[411] · Support Pool of Experts · 27 June 2024 [READ FROM THE DOCUMENT](#) [AI](#) [GOVERNANCE](#) [TRANSPARENCY](#)

Three deliverables prepared for the Spanish DPA under the Support Pool of Experts programme map, develop and pilot tools for evaluating the GDPR compliance of AI systems: a checklist for auditing algorithms, a proposal for Algo-scores and a proposal for AI leaflets as a transparency device. They express the external author's views and not an EDPB position, and are aimed at supervisory authorities inspecting AI systems as well as controllers assessing their own safeguards in the context of the AI Act. Use the checklist as a starting structure for internal AI audits and the leaflet format for user-facing transparency.

AI Risks: Optical Character Recognition and Named Entity Recognition

[412] · Support Pool of Experts · 27 June 2024 [READ FROM THE DOCUMENT](#) [AI](#) [DPIA](#)

Optical character recognition and named entity recognition carry specific data protection risks across procurement, development and deployment, and two reports prepared for the EDPS under the Support Pool of Experts programme list those risks with possible mitigations for each phase. They are the external author's views, not an EDPB position, and are written both for controllers assessing risk and for authorities checking the validity of those assessments during investigations. Use the risk catalogues when running a DPIA on document digitisation, redaction or entity extraction pipelines.

Data Protection Officer training

[413] · Support Pool of Experts · 27 June 2024 [READ FROM THE DOCUMENT](#) [GOVERNANCE](#)

Training material for data protection officers, produced for the Croatian DPA under the Support Pool of Experts programme, comes in three modules: a general module, a health sector module aimed at hospitals and an educational sector module, each with Q&As for practitioners. The material is in Croatian, was completed in December 2023, and expresses the external author's views rather than an EDPB position. It is relevant to organisations designing DPO training or role-based curricula for public health and education, and to Croatian-speaking DPOs directly.

Report on the use of SPE external experts

[414] · Support Pool of Experts · 27 June 2024

Administrative report on how the Board's external expert pool was used in its first period.

Standardised Messenger Audit

[415] · Support Pool of Experts · 27 June 2024

Expert methodology for auditing messaging services against data protection requirements, for supervisory authorities.

Report on the extraterritorial enforcement of the GDPR

[416] · Support Pool of Experts · 17 April 2024

Report on enforcing the GDPR against organisations outside the EEA that fall under Article 3(2), covering representatives, service of decisions and international cooperation. For authorities.

EDPB website auditing tool

[417] · Support Pool of Experts · 29 January 2024 [READ FROM THE DOCUMENT](#) [COOKIES TRACKING](#) [ENFORCEMENT](#)

A free and open source tool, licensed under EUPL 1.2, lets legal and technical auditors prepare, complete and evaluate a compliance audit of a website by visiting it, and controllers and processors can run it against their own sites. It was prepared by external contractors under the Support Pool of Experts programme, is available in English and French with machine-translated German, Italian and Spanish versions, and the current release adds import and export of analyses, search, database management and full-page screenshots. Use it as the same lens a supervisory authority may apply when checking cookies, trackers and third-party requests.

One-Stop-Shop case digest on Security of Processing and Data Breach Notification

[418] · Support Pool of Experts · 18 January 2024 [READ FROM THE DOCUMENT](#) [BREACH](#) [SECURITY](#) [ENFORCEMENT](#)

Ninety final one-stop-shop decisions adopted between January 2019 and June 2023 show how supervisory authorities apply Articles 32, 33 and 34: a breach occurring does not by itself prove that security measures were inappropriate, and authorities assess encryption, access controls, password policies and logging case by case across external attacks, weak internal practices and human error. Each notifiable breach (Article 33(1): any breach unless it is unlikely to result in a risk) must be notified separately with enough detail for the authority to verify compliance, and the risk assessment decides whether affected individuals must be informed. Prepared by an external expert under the Support Pool of Experts programme; use it to calibrate breach severity and notification decisions against decided cases.

Call for Expressions of Interest "Experts for the implementation of the EDPB's Support Pool of Experts"

[419] · Support Pool of Experts · 21 February 2022

Call for experts to join the Board's Support Pool of Experts. Administrative.

EDPB Document on Terms of Reference of the EDPB Support Pool of Experts

[420] · Support Pool of Experts · 15 December 2020

Terms of reference of the Board's Support Pool of Experts. Administrative.

Legal studies

9 documents, 4 with a written takeaway. Newest first.

Study on the secondary use of personal data in the context of scientific research

[421] · Legal study by external providers · 03 April 2025 [READ FROM THE DOCUMENT](#) [LAWFUL BASIS](#) [CONSENT](#) [OTHER](#)

Member States apply no uniform approach to the secondary use of personal data for scientific research: the GDPR does not define scientific research, national definitions and the choice between consent, public task and legitimate interests diverge, and views differ on whether a fresh legal basis is needed for secondary use. The study, commissioned by the EDPB from external researchers with substantive input from 18 countries, concludes that a legal basis is required for secondary use and recommends EDPB guidelines, codes of conduct and clarification of public interest under Article 9(2). It states its authors' views, not the Board's; treat it as a map of national divergence when designing cross-border research.

Study on the enforcement of GDPR obligations against entities established outside the EEA but falling under Article 3(2) GDPR

[422] · Legal study by external providers · 13 April 2023

External study on enforcing GDPR obligations against controllers established outside the EEA under Article 3(2). For authorities.

Study on the national administrative rules impacting the cooperation duties for the national supervisory authorities

[423] · Legal study by external providers · 13 April 2023

External study on national administrative law rules that slow cooperation between supervisory authorities. Institutional.

Legal study on government access to data in third countries - Brazil

[424] · Legal study by external providers · 01 April 2023 [READ FROM THE DOCUMENT](#) [TRANSFERS](#)

Brazil's 2018 General Data Protection Law mirrors the GDPR and its authority ANPD became independent by 2022, but national security, public security, defence and criminal prosecution fall outside that law, judicial orders are required under the Civil Rights Framework for the Internet, and oversight and redress for security-related access remain underdeveloped. The externally authored study, commissioned by the EDPB, does not bind the EDPB or its members and is not an adequacy finding. Exporters can cite it in transfer impact assessments for Brazil as an evidence base on the law and practice of government access, alongside their own analysis.

Legal study on government access to data in third countries - Mexico and Turkey

[425] · Legal study by external providers · 01 April 2023 [READ FROM THE DOCUMENT](#) [TRANSFERS](#)

Mexico offers constitutional ARCO rights to all persons and a 2017 public-sector data protection law, but its 2005 National Security Law carves out national security with fewer safeguards and experts reported pressure on the independence of the authority INAI; Turkey recognises data protection as a constitutional right but exempts judicial, law enforcement and intelligence bodies from its data protection law, leaving gaps in necessity and proportionality, protection of foreigners, oversight independence and rights implementation. The study applies the Article 52(1) Charter test and does not represent the EDPB's official position. Use it as source material for transfer impact assessments involving either country.

Legal study on government access to data in third countries - China, India, Russia

[426] · Legal study by external providers · 08 November 2021 [READ FROM THE DOCUMENT](#) [TRANSFERS](#)

Government access to personal data in China, India and Russia is subject to few effective limits: the study finds vague national security concepts, oversight that is absent or internal only, limited remedies for data subjects and, for China, no substantial protection against state access at all, with Russian intelligence agencies described as virtually unrestricted. Commissioned by the EDPB from external researchers and approved by the plenary on 14 December 2021, it carries the authors' views rather than an EDPB position. Use it as documented, publicly available evidence in a transfer impact assessment under Recommendations 01/2020 whenever an exporter sends data to any of the three countries.

Legal study on the appropriate safeguards under Article 89(1) GDPR for the processing of personal data for scientific research

[427] · Legal study by external providers · 07 September 2021

External study on the safeguards Article 89(1) requires for scientific research processing. Research sector.

Study on the interplay between the AMLD and the GDPR framework

[428] · Legal study by external providers · 01 August 2021

External study on the interplay between anti-money-laundering rules and the GDPR. Financial sector.

Study on the Big Data applications in the European insurance sector

[429] · Legal study by external providers · 01 October 2020

External study on big data applications in European insurance and their data protection risks. Insurance sector background.

Adequacy opinions

10 documents, 10 with a written takeaway. Newest first.

Opinion 28/2025 regarding the European Commission Draft Implementing Decision pursuant to Regulation (EU) 2016/679 on the adequate protection of personal data by Brazil

[430] · Adequacy · 04 November 2025 [READ FROM THE DOCUMENT](#) [TRANSFERS](#)

Brazil's LGPD is closely aligned with the GDPR and the ANPD, made a regulatory agency on 15 September 2025 with over 200 new posts and fines of up to 2% of revenue, is effective, so the EDPB supports the draft adequacy decision while asking the Commission to clarify and monitor whether the LGPD covers criminal law enforcement, the absence of an explicit high-risk DPIA duty, the commercial secrecy limit on transparency, the onward transfer exceptions in Article 33 LGPD, the breadth of national security and the 48-agency SISBIN intelligence system, and the National Council's influence over the ANPD. The Commission adopted the adequacy decision on 26 January 2026 (Decision (EU) 2026/179); exporters may rely on it within its scope, with four-yearly reviews.

Opinion 26/2025 regarding the European Commission Draft Implementing Decision pursuant to Regulation (EU) 2016/679 on the adequate protection of personal data by the United Kingdom

[431] · Adequacy · 16 October 2025 [READ FROM THE DOCUMENT](#) [TRANSFERS](#)

The UK framework as amended by the Data (Use and Access) Act 2025 remains aligned with the EU regime, so the EDPB supports renewing GDPR adequacy until December 2031. It asks the Commission to monitor the Secretary of State's powers to change the rules by secondary legislation, the ICO's new board structure and complaint triage, the recognised legitimate interests basis for disclosures to public authorities, the onward transfer test of protection not materially lower, relaxed automated decision-making rules, wider national security exemptions, technical capability notices affecting end-to-end encryption, bulk personal dataset authorisations and the immigration exemption. Exporters to the UK may keep relying on adequacy but should watch those points.

Opinion 27/2025 regarding the European Commission Draft Implementing Decision pursuant to Directive (EU) 2016/680 on the adequate protection of personal data by the United Kingdom

[432] · Adequacy · 16 October 2025 [READ FROM THE DOCUMENT](#) [TRANSFERS](#) [ENFORCEMENT](#)

The EDPB supports extending the UK's Law Enforcement Directive adequacy for six years to 27 December 2031, reviewed within four years, while flagging that the Data (Use and Access) Act replaces the onward transfer test with a standard of protection not materially lower and drops factors such as national security rules, loosens automated decision-making with an exemption for avoiding obstruction of investigations, removes the duty to log justifications, widens national security exemptions under section 88, and gives the Secretary of State appointment powers over the restructured ICO. It asks the Commission to justify adequacy on each point. Law enforcement authorities exchanging data with UK counterparts may continue.

Opinion 06/2025 regarding the extension of the European Commission Implementing Decisions under the GDPR and the LED on the adequate protection of personal data in the United Kingdom

[433] · Adequacy · 06 May 2025 [READ FROM THE DOCUMENT](#) [SUPERSEDED](#) [TRANSFERS](#)

The EDPB accepted a technical, time-limited six-month extension of the UK GDPR and LED adequacy decisions from 27 June 2025 to 27 December 2025, because the Data (Use and Access) Bill introduced on 23 October 2024 was not expected to pass before late spring and the amended framework could not be assessed in time. It stated that the extension was exceptional and should not in principle be prolonged again, and asked the Commission to monitor UK developments closely during the period. The extension has expired; the renewal is covered by Opinions 26/2025 and 27/2025 of 16 October 2025 on the draft decisions running to December 2031.

Opinion 07/2025 regarding the European Commission Draft Implementing Decision pursuant to Regulation (EU) 2016/679 on the adequate protection of personal data by the European Patent Organisation

[434] · Adequacy · 06 May 2025 [READ FROM THE DOCUMENT](#) [TRANSFERS](#)

The European Patent Organisation's Data Protection Rules of 30 June 2021, overseen by a Data Protection Officer and a Data Protection Board, resemble the EU framework closely enough for the EDPB to support the draft adequacy decision, adopted 5 May 2025, subject to clarifications: that the European Patent Office stays ultimately responsible despite delegated controllers, that onward transmissions to public authorities and non-EEA contracting states keep the protection level, that the Data Protection Board's complaint decisions become binding, and that the President's discretion to waive immunity for law enforcement requests is bounded. The Commission adopted the decision on 15 July 2025 (Decision (EU) 2025/1382); firms sending personal data to the EPO may rely on it within its scope, with four-yearly reviews.

Opinion 5/2023 on the European Commission Draft Implementing Decision on the adequate protection of personal data under the EU-US Data Privacy Framework

[435] · Adequacy · 28 February 2023 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [TRANSFERS](#)

The EDPB welcomed that Executive Order 14086 introduces necessity and proportionality into US signals intelligence, binds the entire intelligence community and creates the Data Protection Review Court, while raising concerns about temporary bulk collection without prior independent authorisation, onward transfers, the standard non-appealable response of the redress court and the absence of specific rules on automated decision-making. It recommended that the Commission make adequacy conditional on the updated intelligence policies and procedures and closely monitor the redress mechanism. The Commission adopted the adequacy decision on 10 July 2023, so the opinion now serves as the reference for the review points.

Opinion 32/2021 regarding the European Commission Draft Implementing Decision pursuant to Regulation (EU) 2016/679 on the adequate protection of personal data in the Republic of Korea

[436] · Adequacy · 24 September 2021 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [TRANSFERS](#)

Korea's Personal Information Protection Act offers protection with numerous similarities to the GDPR, but the EDPB conditions its support on clarifications: the binding force of PIPC Notification No. 2021-1, the exemption of pseudonymised data from access, rectification and erasure rights, the lack of a general right to withdraw consent, onward transfers that rest on consent without disclosure of third-country risks, and unclear rules on government access and intelligence sharing. The opinion is addressed to the European Commission, which subsequently adopted the adequacy decision. Exporters relying on that decision should note the points the EDPB asked the Commission to monitor.

Opinion 14/2021 regarding the European Commission Draft Implementing Decision pursuant to Regulation (EU) 2016/679 on the adequate protection of personal data in the United Kingdom

[437] · Adequacy · 13 April 2021 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [TRANSFERS](#)

UK data protection law shows strong convergence with the GDPR on core principles, but the EDPB flags points the Commission must resolve or monitor: the broadly formulated immigration exemption, the UK's power to recognise third countries as adequate and its agreement with the US under the CLOUD Act, the absence of an Article 48 equivalent, bulk interception where selectors have not been examined by oversight bodies, and intelligence sharing under national security exemptions. The four-year sunset clause is welcomed as the safeguard against divergence. Addressed to the Commission, which adopted the decision; exporters to the UK should track the renewal and the areas listed for monitoring.

Opinion 15/2021 regarding the European Commission Draft Implementing Decision pursuant to Directive (EU) 2016/680 on the adequate protection of personal data in the United Kingdom

[438] · Adequacy · 13 April 2021 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [TRANSFERS](#) [OTHER](#)

The UK Data Protection Act 2018 provides, in principle, a level of protection for law enforcement data essentially equivalent to the Law Enforcement Directive, with alignment on lawfulness, purpose limitation, data quality, special categories and automated decisions. The EDPB asks the Commission to address onward transfers based on UK-only adequacy findings, national security access including certificates that restrict data protection duties, the independence of judicial commissioners, and the effect of the UK-US CLOUD Act agreement, and it welcomes the four-year sunset clause. Addressed to the Commission on 13 April 2021; relevant to competent authorities sharing data with UK law enforcement bodies rather than to private controllers.

Opinion 28/2018 regarding the European Commission Draft Implementing Decision on the adequate protection of personal data in Japan

[439] · Adequacy · 05 December 2018 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [TRANSFERS](#)

The Board welcomed the Supplementary Rules that Japan adopted to bridge gaps with the GDPR and called them essential to adequacy, but asked the Commission to resolve remaining concerns before finalising the decision: consent withdrawal treated as merely desirable, onward transfers losing the Supplementary Rule protections, record-keeping on data origin limited to three years, insufficient evidence that government access is essentially equivalent, and no general rules on automated decisions. It recommended review every two years rather than four and monitoring of the binding force of the PPC Guidelines. Exporters relying on the Japan adequacy decision should read it for the limits of the finding, notably on onward transfers.

Reports, statements and letters

53 documents, 6 with a written takeaway. Newest first.

EDPB Annual Report 2025

[440] · Reports, statements, and letters · 09 April 2026

The Board's annual report for 2025: guidelines adopted, opinions and binding decisions issued, cooperation and enforcement figures. Background only.

Report on stakeholder event on processing of personal data to target or deliver political advertisements

[441] · Reports, statements, and letters · 27 March 2026 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [MARKETING](#) [CONSENT](#) [CONTROLLER PROCESSOR](#)

Stakeholders consulted online on 27 March 2026 (232 participants from platforms, ad tech, civil society, academia, public authorities and political entities) told the EDPB that the political advertising regulation (TPPA) leaves the definition of political advertising, the line between targeting and delivery, explicit consent and age verification unclear, that several platforms have stopped offering political advertising, and that platforms often misdescribe themselves as processors when they act as controllers. The report records those views for the EDPB's forthcoming TPPA guidelines and binds nobody. Publishers, platforms and campaigners should track the guidelines and settle controller roles in their advertising supply chain now.

EDPB letter to the European Commission on the privacy implications of recent proposed legislative changes regarding entry conditions to the United States for EEA citizens

[442] · Reports, statements, and letters · 12 March 2026

Letter to the Commission on the privacy implications of proposed changes to entry conditions for third-country nationals (border and travel data). Border management only.

Report on stakeholder event on anonymisation and pseudonymisation of 12 December 2025

[443] · Reports, statements, and letters · 18 February 2026 [READ FROM THE DOCUMENT](#) [HISTORICAL](#) [OTHER](#) [CONTROLLER PROCESSOR](#)

Stakeholders at the EDPB's remote event on 12 December 2025 (115 participants, mostly business associations, law firms, academia and NGOs) asked for a concrete, practical methodology for judging identifiability after the Court of Justice's ruling, especially for SMEs, and disagreed on whose perspective decides whether data is personal in controller-processor relationships and after transmission to third parties, third countries or the public. The report feeds the pseudonymisation Guidelines 01/2025 and the forthcoming anonymisation guidelines and binds nobody. Organisations relying on pseudonymised data sharing should document the re-identification risk assessment from the recipient's perspective and the legal, organisational and technical measures that support it.

Reply to the civil society open letter in response on recent spyware abuse cases in the EU

[444] · Reports, statements, and letters · 16 February 2026

Reply to civil society on spyware abuse: the Board restates that surveillance tools used against journalists and activists engage fundamental rights and calls for enforcement of existing safeguards. Law enforcement and national security.

EDPB Report on the public consultation on helpful templates for organisations to facilitate their GDPR compliance

[445] · Reports, statements, and letters · 12 February 2026 [READ FROM THE DOCUMENT](#) [GOVERNANCE](#) [LAWFUL BASIS](#) [TRANSPARENCY](#)

Of 82 written contributions received between 5 November and 3 December 2025 (71 from the EU and EEA, 11 from third countries), respondents most often asked for EU-level templates for records of processing activities, DPIAs, legitimate interest assessments, privacy notices, transfer impact assessments, processing agreements, breach notification forms and privacy risk assessments. The EDPB commits in its 2026–2027 work programme to produce three: a legitimate interest assessment, a record of processing activities and a privacy notice, harmonised with existing national templates, with more if time allows. Organisations, especially SMEs, should plan to align their internal forms with these once published rather than build new ones now.

EDPB Work Programme 2026–2027

[446] · Reports, statements, and letters · 12 February 2026 [READ FROM THE DOCUMENT](#) [GOVERNANCE](#) [TRANSPARENCY](#)

The EDPB's 2026–2027 programme, adopted 11 February 2026, lists guidelines to expect on anonymisation, pseudonymisation, legitimate interest assessment, children's data, consent or pay models, scientific research, generative AI data scraping, telemetry data and blockchain, EU templates for breach notifications, DPIAs, legitimate interest assessments, records of processing and privacy notices, updated DPO guidelines, guidelines on administrative fines, and joint guidance on the interplay of the GDPR with the AI Act, DMA, DSA, political advertising and AML rules. The 2026 coordinated enforcement action targets transparency obligations under Articles 12–14. Practitioners should map pending guidance against open policy decisions and prepare transparency notices for the 2026 sweep.

Statement 4/2025 on the European Commission's Recommendation on draft non-binding model contractual terms on data sharing under the Data Act

[447] · Reports, statements, and letters · 14 July 2025

Statement on the Commission's model contractual terms for data sharing under the Data Act: the terms must not be read as a lawful basis, and personal data in shared datasets still needs its own GDPR footing.

The Helsinki Statement on enhanced clarity, support and engagement

[448] · Reports, statements, and letters · 03 July 2025

The Helsinki Statement (high-level meeting of 1 to 2 July 2025): the Board commits to plainer guidance, more support for small organisations and closer engagement with stakeholders. Programme statement, no obligations.

EDPB Annual Report 2024

[449] · Reports, statements, and letters · 23 April 2025

The Board's annual report for 2024: guidelines adopted, opinions and binding decisions issued, cooperation and enforcement figures. Background only.

Statement 6/2024 on the Second Report on the Application of the General Data Protection Regulation - Fostering Cross-Regulatory Consistency and Cooperation

[450] · Reports, statements, and letters · 03 December 2024

Statement welcoming the Commission's second report on the GDPR and calling for consistency between the GDPR and newer digital laws. Policy position, no obligations.

EDPB Report on the first review of the European Commission Implementing Decision on the adequate protection of personal data under the EU-US Data Privacy Framework

[451] · Reports, statements, and letters · 04 November 2024

Report on the first periodic review of the EU-US Data Privacy Framework adequacy decision: the Board finds the safeguards in place but asks the Commission to keep monitoring the Data Protection Review Court and the PCLOB, and recommends the next review within three years. Transfers background.

Statement 5/2024 on the Recommendations of the High-Level Group on Access to Data for Effective Law Enforcement

[452] • Reports, statements, and letters • 04 November 2024

Statement on the High-Level Group's recommendations on law enforcement access to data, warning against weakening encryption and data retention mandates. Law enforcement policy.

EDPB Work Programme 2024-2025

[453] • Reports, statements, and letters • 09 October 2024

The Board's work programme for 2024-2025: the guidelines, templates and coordinated actions it planned for the period. Background for what was coming.

Statement 4/2024 on the recent legislative developments on the Draft Regulation laying down additional procedural rules for the enforcement of the GDPR

[454] • Reports, statements, and letters • 09 October 2024

Statement on the draft Regulation laying down additional procedural rules for cross-border GDPR enforcement, supporting harmonised deadlines and parties' rights. Now adopted as Regulation (EU) 2025/2518.

Statement 3/2024 on data protection authorities' role in the Artificial Intelligence Act framework

[455] • Reports, statements, and letters • 16 July 2024 [READ FROM THE DOCUMENT](#) [AI](#) [GOVERNANCE](#) [ENFORCEMENT](#)

Member States should designate data protection authorities as market surveillance authorities under the AI Act, in particular for the high-risk systems named in Article 74(8) covering law enforcement, border management and democratic processes, and should consider doing so for the other Annex III high-risk systems likely to affect individuals' rights, with the DPA as single point of contact. Addressed to Member States, the Commission and the AI Office, the statement notes that no clear coordination yet exists between the AI Office and DPAs on general-purpose AI models and calls for cooperation and additional resources. Track which authority your Member State designates for AI Act supervision.

Statement 2/2024 on the financial data access and payments package

[456] • Reports, statements, and letters • 27 May 2024

Statement on the financial data access and payments package (FIDA, PSD3, PSR), asking for clear purpose limits and consent rules for open finance data sharing. Financial sector.

EDPB Annual Report 2023

[457] • Reports, statements, and letters • 23 April 2024

The Board's annual report for 2023: guidelines adopted, opinions and binding decisions issued, cooperation and enforcement figures. Background only.

EDPB Strategy 2024-2027

[458] • Reports, statements, and letters • 18 April 2024

The Board's strategy for 2024-2027: its priorities for harmonisation, enforcement and engagement. Institutional.

Statement 1/2024 on legislative developments regarding the Proposal for a Regulation laying down rules to prevent and combat child sexual abuse

[459] • Reports, statements, and letters • 14 February 2024

Statement on the proposed Regulation to prevent and combat child sexual abuse, warning that general and indiscriminate scanning of private communications is disproportionate. Legislative position.

Contribution of the EDPB to the report on the application of the GDPR under Article 97 - 2023

[460] • Reports, statements, and letters • 15 December 2023

The Board's 2023 input to the Commission's report on the application of the GDPR: cooperation, resources and areas needing clarification.

Statement 1/2023 on the first review of the functioning of the adequacy decision for Japan**[461]** · Reports, statements, and letters · 18 July 2023

Statement on the first review of the Japan adequacy decision: the Board sees no need to change it and asks for continued monitoring of onward transfers and government access. Transfers background.

EDPB Annual Report 2022**[462]** · Reports, statements, and letters · 17 April 2023

The Board's annual report for 2022: guidelines adopted, opinions and binding decisions issued, cooperation and enforcement figures. Background only.

EDPB Work Programme 2023-2024**[463]** · Reports, statements, and letters · 22 February 2023

The Board's work programme for 2023-2024: the guidelines, templates and coordinated actions it planned for the period. Background for what was coming.

Statement 04/2022 on the design choices for a digital euro from the privacy and data protection perspective**[464]** · Reports, statements, and letters · 10 October 2022

Statement on privacy design choices for a digital euro, asking for a high privacy threshold for offline payments. Payments sector.

Statement 03/2022 on the European Police Cooperation Code**[465]** · Reports, statements, and letters · 12 September 2022

Statement on the proposed European Police Cooperation Code (Prüm II and information exchange). Police sector.

Overview on resources made available by Member States to the Data Protection Supervisory Authorities**[466]** · Reports, statements, and letters · 05 September 2022

Survey of the staff and budget Member States give their data protection authorities, and the gaps. Institutional.

Statement 02/2022 on personal data transfers to the Russian Federation**[467]** · Reports, statements, and letters · 12 July 2022

Statement on transfers to the Russian Federation after the invasion of Ukraine: exporters must reassess transfer impact assessments in light of the legal situation there. Transfers.

Response of the EDPB to the European Commission's targeted consultation on a digital euro**[468]** · Reports, statements, and letters · 14 June 2022

Response to the Commission's targeted consultation on the digital euro. Payments sector.

EDPB Annual Report 2021**[469]** · Reports, statements, and letters · 12 May 2022

The Board's annual report for 2021: guidelines adopted, opinions and binding decisions issued, cooperation and enforcement figures. Background only.

Statement on enforcement cooperation**[470]** · Reports, statements, and letters · 28 April 2022

Statement committing authorities to closer cooperation on strategic cross-border cases. Institutional.

Contribution of the EDPB to the European Commission's evaluation of the Data Protection Law Enforcement Directive (LED) under Article 62**[471]** · Reports, statements, and letters · 14 December 2021

The Board's 2021 contribution to the Commission's evaluation of the Law Enforcement Directive. Police and justice sector.

Statement on the Digital Services Package and Data Strategy**[472]** · Reports, statements, and letters · 18 November 2021

Statement on the Commission's Digital Services Package and Data Strategy proposals: the Board asks that the DSA, DMA, Data Governance Act and Data Act stay consistent with the GDPR. All since adopted.

Overview on resources made available by Member States to the Data Protection Authorities and on enforcement actions by the Data Protection Authorities**[473]** · Reports, statements, and letters · 11 August 2021

Survey of authority resources and enforcement actions across Member States. Institutional.

EDPB Annual Report 2020**[474]** · Reports, statements, and letters · 02 June 2021

The Board's annual report for 2020: guidelines adopted, opinions and binding decisions issued, cooperation and enforcement figures. Background only.

Statement 05/2021 on the Data Governance Act in light of the legislative developments**[475]** · Reports, statements, and letters · 20 May 2021

Statement on the Data Governance Act as negotiated, asking that data intermediation and altruism stay consistent with the GDPR. Now adopted.

EDPB contribution to the 6th round of consultations on the draft Second Additional Protocol to the Council of Europe Budapest Convention on Cybercrime**[476]** · Reports, statements, and letters · 04 May 2021

Contribution on the draft Second Additional Protocol to the Budapest Convention on Cybercrime, on direct cross-border access to data by law enforcement. Law enforcement.

EDPB Work Programme 2021-2022**[477]** · Reports, statements, and letters · 16 March 2021

The Board's work programme for 2021-2022: the guidelines, templates and coordinated actions it planned for the period. Background for what was coming.

Statement 03/2021 on the ePrivacy Regulation**[478]** · Reports, statements, and letters · 09 March 2021[READ FROM THE DOCUMENT](#)[HISTORICAL](#)[COOKIES TRACKING](#)[OTHER](#)

The Council's negotiating mandate of 10 February 2021 on the ePrivacy Regulation risks lowering protection below the current Directive: the EDPB rejects general and indiscriminate retention of traffic and location data, calls for an explicit prohibition of cookie walls with a fair alternative, opposes further processing of metadata on a compatibility test, finds the exceptions in Articles 6, 6b and 6c too broad, and insists that data protection authorities enforce the Regulation within the GDPR cooperation mechanisms. Addressed to the co-legislators. The position is historical, but it records the EDPB's standing view on cookie walls and on metadata retention.

Statement 02/2021 on new draft provisions of the second additional protocol to the Council of Europe Convention on Cybercrime (Budapest Convention)**[479]** · Reports, statements, and letters · 02 February 2021

Statement on new draft provisions of the Budapest Convention's second protocol. Law enforcement.

EDPB Strategy 2021-2023**[480]** · Reports, statements, and letters · 15 December 2020

The Board's strategy for 2021-2023: its priorities for harmonisation, enforcement and engagement. Institutional.

Statement on the ePrivacy Regulation and the future role of Supervisory Authorities and the EDPB**[481]** · Reports, statements, and letters · 19 November 2020

Statement on the ePrivacy Regulation proposal and the future role of supervisory authorities. The Commission announced the withdrawal of the proposal in February 2025 and formally withdrew it in October 2025 (OJ C/2025/5423).

EDPB Annual Report 2019**[482]** · Reports, statements, and letters · 18 May 2020

The Board's annual report for 2019: guidelines adopted, opinions and binding decisions issued, cooperation and enforcement figures. Background only.

EDPB response to Hoda letter**[483]** · Reports, statements, and letters · 21 February 2020

Reply to correspondence from Hoda S.r.l., an Italian company, on the handling of a request for an opinion that the Italian authority had withdrawn, pointing the company to the general stakeholder channels. Correspondence.

Contribution of the EDPB to the evaluation of the GDPR under Article 97**[484]** · Reports, statements, and letters · 18 February 2020

The Board's 2020 contribution to the Commission's first evaluation of the GDPR. Institutional.

EU - U.S. Privacy Shield - Third Annual Joint Review report - 12/11/2019**[485]** · Reports, statements, and letters · 12 November 2019

Third annual joint review of the EU-US Privacy Shield (2019). The framework was invalidated in July 2020; historical.

EDPB Annual Report 2018**[486]** · Reports, statements, and letters · 16 July 2019

The Board's annual report for 2018: guidelines adopted, opinions and binding decisions issued, cooperation and enforcement figures. Background only.

Statement 3/2019 on an ePrivacy regulation**[487]** · Reports, statements, and letters · 13 March 2019

Statement urging the co-legislators to adopt the ePrivacy Regulation. The Commission announced the withdrawal of the proposal in February 2025 and formally withdrew it in October 2025 (OJ C/2025/5423).

EDPB LIBE report on the implementation of GDPR**[488]** · Reports, statements, and letters · 26 February 2019

Report to the European Parliament's LIBE committee on the first year of GDPR implementation. Institutional.

EDPB Statement 01/2019 on the US Foreign Account Tax Compliance Act (FATCA)**[489]** · Reports, statements, and letters · 25 February 2019

Statement on the US Foreign Account Tax Compliance Act and the data protection issues in transferring account data to the US tax authority. Financial sector.

EDPB Work Programme 2019-2020**[490]** · Reports, statements, and letters · 12 February 2019

The Board's work programme for 2019-2020: the guidelines, templates and coordinated actions it planned for the period. Background for what was coming.

EU - U.S. Privacy Shield - Second Annual Joint Review report - 22/01/2019**[491]** · Reports, statements, and letters · 22 January 2019

Second annual joint review of the EU-US Privacy Shield (2019). Historical.

Statement of the EDPB on the revision of the ePrivacy Regulation and its impact on the protection of individuals with regard to the privacy and confidentiality of their communications**[492]** · Reports, statements, and letters · 25 May 2018

Statement on the revision of the ePrivacy Regulation proposal. The Commission announced the withdrawal of the proposal in February 2025 and formally withdrew it in October 2025 (OJ C/2025/5423).

Other policy documents

8 documents, 1 with a written takeaway. Newest first.

EDPB Comments on the European Commission's draft measures in the specification proceedings concerning Alphabet's compliance with Article 6(11) Digital Markets Act

[493] · Other policy document · 05 May 2026

Comments to the Commission on the draft measures specifying Alphabet's obligation under Article 6(11) DMA to share search ranking, query, click and view data with competing search engines, including relevant AI services: the EDPB asks for effective anonymisation of the shared data and safeguards against re-identification. Gatekeeper platforms only.

Contribution of the EDPB to the European Commission's evaluation of the Data Protection Law Enforcement Directive ("LED") under Article 62 LED

[494] · Other policy document · 19 January 2026

The Board's contribution to the Commission's evaluation of the Law Enforcement Directive. Police and justice sector.

EDPB contribution to the EBA public consultation on draft regulatory technical standards on AML/CFT

[495] · Other policy document · 22 July 2025

Comments to the European Banking Authority on draft technical standards for anti-money-laundering controls, on data minimisation and retention in customer due diligence. Financial sector.

EDPB comments on European Commission's Guidelines on Art. 28 DSA

[496] · Other policy document · 25 June 2025

Comments on the Commission's Digital Services Act Article 28 guidelines on protecting minors online, on age assurance and profiling-based advertising to children. Platforms in scope of the DSA.

Position paper on Interplay between data protection and competition law

[497] · Other policy document · 17 January 2025 [READ FROM THE DOCUMENT](#) [GOVERNANCE](#) [ENFORCEMENT](#)

Data protection and competition law pursue distinct objectives but both protect the individual, as data subject and as consumer, and personal data is central to digital business models, so the two sets of authorities must coordinate. Following the CJEU judgment in *Meta v Bundeskartellamt*, a competition authority assessing abuse of dominance may need to examine GDPR compliance but cannot replace the competent data protection authority, and the principle of sincere cooperation makes cooperation mandatory in some cases. The paper recommends dedicated coordination teams, cooperation protocols with deadlines and information-sharing rules, and joint sector inquiries. Expect data-sharing and default-setting practices of dominant firms to be reviewed by both regulators.

Joint EDPB-EDPS contribution to the public consultation on the draft template relating to the description of consumer profiling techniques (Art.15 DMA)

[498] · Other policy document · 20 September 2023

Joint contribution on the Commission's template for describing consumer profiling techniques under the Digital Markets Act. Gatekeepers only.

EDPB contribution to the consultation on a draft second additional protocol to the Council of Europe Convention on Cybercrime

[499] · Other policy document · 13 November 2019

Contribution to the consultation on the Budapest Convention's second protocol. Law enforcement.

EDPB pleading before the CJEU in Case C-311/18 (Facebook Ireland and Schrems)

[500] · Other policy document · 17 July 2019

The Board's pleading before the Court of Justice in *Schrems II* (C-311/18). Historical; the consequences are in Recommendations 01/2020.

Internal procedure

43 documents, 0 with a written takeaway. Newest first.

Rules of Procedure for the "Informal Panel of EU DPAs" according to the EU-U.S. Data Privacy Framework - version 2.0

[501] · Procedure · 23 January 2026

Procedure of the Board. Governs how the Board itself works: no obligation on controllers or processors.

EDPB Document setting forth a Cooperation Procedure for the Authorisation of Contractual Clauses under Article 46(3)(a) GDPR and for the Adoption of Standard Contractual Clauses under Article 46(2)(d) GDPR

[502] · Procedure · 22 January 2026

Procedure of the Board. Governs how the Board itself works: no obligation on controllers or processors.

EDPB Best practices for the organisation of EDPB Plenary meetings

[503] · Internal procedural guidance · 02 December 2025

Internal procedural guidance of the Board. Governs how the Board itself works: no obligation on controllers or processors.

Internal EDPB Document 3/2019 on internal guidance on Article 64(2) GDPR - version 2

[504] · Internal document · 02 December 2025

Internal document of the Board. Governs how the Board itself works: no obligation on controllers or processors.

EDPB Document Setting Forth a Co-Operation procedure for the approval of Binding Corporate Rules for controllers and processors

[505] · Procedure · 19 March 2025

Procedure of the Board. Governs how the Board itself works: no obligation on controllers or processors.

EDPB Document on Process guide for the selection and the handling of strategic cases

[506] · Internal document · 12 February 2025

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EU-US Data Privacy Framework Template Complaint Form for Submitting Commercial Related Complaints to EU DPAs

[507] · Procedure · 24 April 2024

Procedure of the Board. Governs how the Board itself works: no obligation on controllers or processors.

Rules of Procedure for the "Informal Panel of EU DPAs" according to the EU-US Data Privacy Framework

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Rules of Procedure on the Data Privacy Framework redress mechanism for national security purposes

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Template Complaint Form to the U.S. Office of the Director of National Intelligence's Civil Liberties Protection Officer (CLPO)

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EDPB Best practices for the organisation of EDPB Plenary meetings

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Internal procedural guidance of the Board. Governs how the Board itself works: no obligation on controllers or processors.

Decision of the European Data Protection Board on Records management**[512]** · Internal procedural guidance · 20 September 2023

Internal procedural guidance of the Board. Governs how the Board itself works: no obligation on controllers or processors.

EDPB Document on the procedure for the adoption of the EDPB opinions regarding national criteria for certification and European Data Protection Seals**[513]** · Procedure · 27 February 2023

Procedure of the Board. Governs how the Board itself works: no obligation on controllers or processors.

EDPB Document on selection of cases of strategic importance**[514]** · Procedure · 29 July 2022

Procedure of the Board. Governs how the Board itself works: no obligation on controllers or processors.

Rules of Procedure - version 8**[515]** · Rules of procedure · 06 April 2022

Rules of procedure of the Board. Governs how the Board itself works: no obligation on controllers or processors.

Internal EDPB Document 5/2021 on handling complaints against public authorities or private bodies acting on the basis of Article 6(1), point (c) or (e), GDPR in another EEA Member State**[516]** · Internal document · 07 July 2021

Internal document of the Board. Governs how the Board itself works: no obligation on controllers or processors.

Internal EDPB Document 04/2021 on criteria of territorial competence of supervisory authorities to enforce Article 5(3) of the ePrivacy Directive**[517]** · Internal document · 18 June 2021

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Internal EDPB Document 3/2021 providing guidance on the planning and preparation of EDPB Binding Decisions under Article 65(1)(a) GDPR**[518]** · Internal procedural guidance · 13 April 2021

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Internal EDPB Document 02/2021 on SAs duties in relation to alleged GDPR infringements**[519]** · Internal document · 02 February 2021

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Internal EDPB Document 1/2021 on the application of Art. 62 GDPR - Joint Operations**[520]** · Internal document · 14 January 2021

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Internal EDPB Document 5/2020 on how to proceed with cases under cooperation and consistency procedures in view of the end of the Brexit transition period**[521]** · Internal document · 19 December 2020

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Internal EDPB Document 07/2020 on the Terms of Reference of the EDPB Support Pool of Experts**[522]** · Internal document · 15 December 2020

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Internal EDPB Document 6/2020 on preliminary steps to handle a complaint: admissibility and vetting of complaints

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EDPB Document on the procedure for the development of informal "Codes of Conduct sessions"

[524] • Procedure • 10 November 2020

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EDPB document on the procedure for the approval of certification criteria by the EDPB resulting in a common certification, the European Data Protection Seal

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